Trial Transcript

Case Number: CGC-21-594102
Date: April 16, 2025

In the matter of:

FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM, et al.

TRIAL

Day 7

CERTIFIED COPY

Reported by:
DENNIS M. SOUZA

Steno
Official Reporters

1100 Glendon Avenue
Suite 1850
Los Angeles, CA 90024
concierge@steno.com
310.573.8380

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO - UNLIMITED
BEFORE THE HONORABLE GARRETT L. WONG
DEPARTMENT 504

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs. Case No. CGC-21-594102

SUBHI ABDELHALIM;
INDIVIDUALLY, AND DBA
SONOMA LIQUOR, DOES
1 TO 50,

Defendants.
_____/

REPORTER'S TRANSCRIPT

WEDNESDAY, APRIL 16, 2025

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Location: San Francisco Superior Court
400 McAllister St., Dept 504
San Francisco, California 94102

APPEARANCES

For the Plaintiff: FRANCISCUS DYLAN ROSARIO
7624 Melody Drive
Rohnert Park, California, 94928
IN PRO PER

For the Defendants: PHILLIPS, SPALLAS & ANGSTADT, LLP
560 Mission Street, Suite 1010
San Francisco, California 94105
BY: PRIYA NAVARATNASINGHAM, Esq.
BY: ALBERTO REYNA, Esq.

Reported by: Dennis M. Souza, CSR# 3893

SESSIONS

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THERE WERE NONE MARKED

April 16, 2025 San Francisco, California

PROCEEDINGS

THE CLERK: Please be seated and come to order.

THE COURT: We are on the record. The record should reflect we are here on Rosario versus Abdelhalim and Mr. Rosario is present with Mr. Keegan, Mr. Sobati, and the Defense is represented by Miss Navaratnasingham and Mr. Reyna.

I received a motion yesterday to bifurcate and submit special verdict form on causation prior to the damages phase.

Where does the Defense stand on this?

MS. NAVARATNASINGHAM: Yes, Your Honor. We are agreeing to bifurcate the issue of liability from the issue of injuries and damages.

The only thing we were going to request, Your Honor, was that, to streamline the process, we have the issue of liability heard, then we prepared a verdict form on just liability which the jury can then deliberate over, and then we keep the same jury for injuries and damages, which if the jury comes back with a determination that my client is liable, then we could move to injuries and damages a day or two later, whatever makes sense to the Court.

THE COURT: Very well.

MR. ROSARIO: The Court says this is my case to prove. We are going to start with causation so we

can get all these things out of the way.

There are a number of different things that happen once causation is established. Fault, for example, it creates a new fact for the Court and we are able to use that as we move forward.

So causation is absolutely the critical piece. They are claiming, still to this day -- that you stated yesterday in front of all the jury people that they are claiming there is no fault, nothing. So we need to get that out of the way. Causation, we can't move forward without that.

You stated clearly that: We don't have causation for the medical, we don't have causation for the other damages.

That is the only way this thing can go down.

THE COURT: I didn't say: You don't have causation for medical. What I said is there are no experts that can testify with respect to causation in this case.

I am not preventing you, per my earlier motion in limine, from telling the jury some aspect of what happened to you.

These are matters of common experience. The law indicates -- even in the cases that Defense Counsel have cited -- allows you to discuss things such as your opinion of what happened and to describe your injuries.

However, I am just warning you that the

moment you start getting into what's in the records, if any, as you plan to present, that requires doctors or expert witness's opinion, and anything that is contained in those medical records, are, essentially -- and I haven't reviewed them -- are, essentially, hearsay until shown otherwise.

MR. ROSARIO: Business records come from the hospitals with MRIs and x-rays. Those are part of the standard business records clause. They fall under that.

They can be used as information for people to come across and be able to determine causation.

If somebody goes in and they have, for example, a stab wound or a gunshot wound, they find a bullet inside a person, this is obvious as to that.

Those things don't just happen, people don't just get shot and bullets manifest in people's bodies.

The same thing for the accident here. So when a person sees that there is a damage, they can go to 911 center or emergency room.

You have damage. We will show the chain of events. We have a bunch of exhibits to show the chain of events that led to the injury and the images that we have from three different medical centers; Sutter Zuckerberg as well as UCSF, three different x-rays on the same day all showing the damage that the Defendant caused to me.

We have the evidence. We have the exhibits.

We have Bates stamps on the exhibits. We will introduce those as we build the timeline. The theory of our case will begin with the fact I was a pedestrian. We will move forward from that.

From there, we will establish that I was struck; we have evidence to show I was struck from behind followed by the incidents and the details that followed immediately after the striking.

We have the exhibits that are available here.

UCSF x-rays, exams which we have an offer of proof; Sutter discharge; Sutter MRI images; the Zuckerberg chest CT scans; the catalogs from the police report; the SFPD photos and requests; the 911 transcripts that were taken from the audio files, the PSA law police subpoena; the PSA law records request for the medical records that were at the hospital; Officer Fernandez's deposition and then the scene photos from the incident and collision.

All have been prepared with Bates stamps and the exhibit numbers to be presented to the Court.

THE COURT: Sir, I appreciate your offer of proof in this matter.

Let me just caution you here, you need not tell the Court everything you are going to do with some belief that the Court is going to guarantee the admissibility of any of those items that you seek to present.

I am going to field the objections and your

requests -- first of all, you will make the request to have something admitted. That is the first thing you are going to do.

Then secondly, there will be an objection. I will hear the objection -- it is usually a one or two-word objection like "hearsay" and I will give you an opportunity to respond, and I will rule. Once I have ruled, then we will move on.

I am going to tell you right now, however, just so that this gives you some understanding of where I am coming from, I will allow you to testify, as I said, about your aches and pains and what has happened at the accident and so forth, these are all matters of common understanding; however, the moment you start explaining what -- your understanding of the results of the CT scan or an MRI -- or anything else -- that requires an expert witness to talk about it.

So I am just giving you a forecast. I am not saying I am doing it yet because I don't know what evidence is in there yet.

MR. ROSARIO: Okay.

THE COURT: So you go ahead and try and make whatever evidence you want to have -- you want to try to have something admitted, that is fine, but there is going to be -- presumably, there is going to be some form of hearsay objection unless Counsel decides strategically that that is something they are not

1 going to object to.
2 Yes, sir?
3 MR. ROSARIO: All right. When a business
4 records is that somebody has a pneumothorax, that word
5 means they have a collapsed lung.
6 It doesn't require any special -- look it up
7 in the dictionary. There is no special anything about
8 that. So when the documents clearly state you have
9 broken ribs and you have pneumothorax and are going to
10 suffocate to death, those things are obvious.
11 You cannot unwind that. You cannot delete
12 the reality. The records are provided by three
13 different companies.
14 So I am understanding you are saying we are
15 going to present those. All right.
16 The Defense claims that you need an expert to
17 understand that a punctured lung and broken ribs -- I
18 don't believe so. I think any common person
19 understands -- any person that has ever been hit
20 before or broken a rib or cracked a rib requires no
21 medical.
22 If someone gets shot, you have a gunshot
23 wound, it is obvious.
24 So we are not looking for anybody to analyze
25 what these things mean because these are obvious
26 common-sense injuries that people can understand
27 clearly.
28 And the law provides that. There is a lot of

case law where people walk in and say: I got shot, I got ran over, I have a broken leg. The medical record and business records show those things.

There is nothing special claiming you need an expert to say that anybody got shot. They have a bullet wound and they have a bullet in them.

We are not trying to get damages, Your Honor. We are trying to show there was an injury.

You cannot erase an injury that was created and recorded by medical agencies. Those do not require experts. Those are life-threatening injuries a person can die from.

Again, we are back at this place saying: We will have to take a recess, because I would have to figure this out.

If you feel that life-threatening injuries like a bullet wound and a bullet inside of a person requires an expert to interpret, we will have a pause here. I don't believe that you are allowed to tell me that I cannot present a business record of an injury that was recorded.

If you are going to say what the long-term injuries are, I agree with you, those require experts to analyze. But seeing a -- from any type of individual who sees that somebody has a bullet wound or fractured ribs and a pneumothorax and a collapsing lung, those things are documented by three different hospitals.

We are not telling anybody what they mean. I think the people who are in the jury can understand, once your lung starts collapsing it can cause a whole chain of events.

We are not trying to tell people what it is, we are not even going to say. We are just trying to show there was an injury.

This is where we get to causation. That is why I asked to bifurcate.

THE COURT: Mr. Rosario, I understand, even in personal injury cases, the complexity of causation. But the causation issue is not always beyond common experience.

An expert testimony is not always required to establish causation, that much I agree.

If a jury could reasonably conclude that your accident might be expected to produce the kind of injuries you are describing, then they can make a determination, in part, about what happened between -- what happened with regard to the causal relation between the accident and your injuries, even without expert testimony. I think that much we can say.

However, if you are trying to admit, even through a business record, that somebody said X or somebody said Y about an MRI, an x-ray, a CT scan, there is going to be an objection. The objection is going to be hearsay.

MR. ROSARIO: I understand.

THE COURT: Because that is a out-of-court statement offered to prove the truth of the matter.

You are relying on what those x-rays, those MRIs, those CT scans have been interpreted by another to explain to you.

It is your understanding what someone else told you. That is hearsay and I will sustain the objection.

MR. ROSARIO: Okay. Let me kind of like give you --

THE COURT: No. I won't spend the next 10 or 15 minutes arguing with you over what I haven't even heard with regards to evidence.

I am giving you a general outline of where I am coming from with respect to the rulings.

I don't know if Defense Counsel agrees or disagrees with the Court. They may have an objection, too.

You haven't even given them an opportunity to speak.

So the evidence isn't even in yet.

I need to hear what you are offering to put into evidence before I can even rule on this.

No. I don't want your offer of proof right now. You are going to have to deal with the objections.

I don't deal with evidence beforehand unless there is a specific piece of evidence that one party

is objecting to. But your affirmative demonstration of what evidence is required is not something that I need to hear.

You are required to put on the evidence on the basic steps, as any other person would, to prove your case. It is your burden.

You do it during trial, not before; at least in this occasion, not now, five minutes before the jury has been asked to come into the courtroom.

MR. ROSARIO: What are you talking about? I have made my case and I have stated these details and multiple things to you.

THE COURT: Sir, I don't need to hear anything further from you right now. As you said, you have repeated your arguments on multiple occasions. You made multiple offers of proof. Now is the time for you to try to have this evidence admitted in Court.

It will be subject to whatever objections Defense makes.

I am not saying I am granting every objection or sustaining every objection or overruling every objection.

Sir --

MR. ROSARIO: Yes, sir?

THE COURT: You will look at me when I am speaking to you.

Do you understand that?

I do not condone you moving away or walking away or turning your head to speak to somebody else when I am discussing this matter with you.

I demand complete respect in this courtroom and courtesy to all parties, sir.

MR. ROSARIO: I didn't know you were talking to me. You continued to look at the Defense. Is that right?

THE COURT: I was not speaking to the Defense. I was speaking to you, sir.

MR. ROSARIO: I am sorry. It looks to me your eyes are focusing on them. I apologize. I didn't know you were directly speaking to me.

THE COURT: I will hear now from Defense Counsel on anything.

MS. NAVARATNASINGHAM: Your Honor, yes, we will raise objections to the records.

So the bifurcation issue is not at issue?

THE COURT: The bifurcation issue, since the parties are willing to -- since the parties are willing to do it and there is an agreement by Defense to bifurcate the matter, and since the Defense has prepared a verdict form on the liability/causation issue, the Court is willing to grant the motion on its own.

MR. ROSARIO: I have not. We have provided a verdict form on the causation, not on liability.

That is completely new to us. We were

surprised about any concept of discussion of liability.

We said causation, not the liability. That was very explicit in the documentation. We were looking at causation, not liability yet.

So I want to make sure that the Court right now knows that the Plaintiff has requested and has asked for the bifurcation on causation, not on liability.

We didn't even want to talk about damages. We are not looking at interpretations of anything --

THE COURT: Sir, your motion says:

The Plaintiff requests that the jury first hear and render a special verdict on the threshold issues of liability and causation.

This is exactly what you asked for.

MR. ROSARIO: Then why are we excluding causation suddenly? I asked for liability and causation, not just for liability.

THE COURT: I am not excluding causation. I am telling you what the parameters are for admission of the evidence, which is a wholly different issue.

MR. ROSARIO: Let's make sure we have a stipulation on causation and liability not just liability.

This is a causation situation. We are going to show the Defendant --

THE COURT: I don't need to hear further

argument. There is no objection to your motion, sir.

They have simply prepared a verdict form which I will review and you should review before the matter is submitted to the jury.

MR. ROSARIO: What do you expect to happen when your jury comes in today?

THE COURT: If you would like I can tell the jury this morning that the case will be bifurcated.

That is up to you, if you want me to do that.

MR. ROSARIO: Yeah. I would like to hear on the causation first, yes, please.

THE COURT: Sir, your motion was for a bifurcated hearing on the threshold issues of liability and causation.

MR. ROSARIO: Yes. So we are going to start with --

THE COURT: So we are going to have two phases to this case. And I can explain that to them.

MR. ROSARIO: Okay.

THE COURT: Let me do that. And then I am going -- first, I am going to give them the instructions in the case, tell them how this case is going to work.

Then I am going to explain to them that the parties have agreed to bifurcate this case in two ways. There will be two phases to the trial.

The first will be to deal with the threshold issues of liability and causation; and the second

phase, assuming they find liability and causation in this matter, will be for them to decide damages. All right.

That is all I am going to say. Then you can make your opening statement. I will limit your opening statement to a half an hour at most.

I don't think this is that complicated a case.

So please try and limit your opening statements to 30 minutes.

MR. ROSARIO: Your Honor, we have also Officer Fernandez, which is material in the causation, Officer Fernandez, we have a subpoena for him. We don't see him yet in the courtroom. He has been subpoenaed for today.

THE COURT: Very well. Be prepared after your opening statements to put on your evidence, sir.

MR. ROSARIO: Okay.

THE COURT: Whatever that might be.

MS. NAVARATNASINGHAM: Your Honor, I hate to belabor this, there is two points I wanted to raise from yesterday if we could take that up.

Number one, we didn't mention anything about a traumatic brain injury before the jury, but I know the jury was talking amongst themselves, thinking that would be an issue.

I was going to request that the Court make a statement to the jury before the presentation of

evidence that an allegation of traumatic brain injury is not at issue in this case in light of your in limine motion.

We didn't raise it yesterday, Mr. Rosario didn't raise it, but the jurors were talking amongst themselves during voir dire.

So I would just ask that request before the presentation of evidence.

THE COURT: Do you have specific a language you wanted me to use?

MS. NAVARATNASINGHAM: I was going to suggest, Your Honor, maybe if the Court were to reference yesterday's voir dire and that some jurors had mentioned traumatic brain injury but that we want to be very clear that any claim of a traumatic brain injury or brain injury is not being made in this case.

MR. ROSARIO: Objection. We feel that the Defense has not provided an affirmative Defense against that to begin with to prove that I don't have it.

So trying to get a summary judgment to exclude it right now at this phase is premature. We haven't even gotten to the damages. We haven't even discussed those types of things.

What we are going to be showing in this phase is specifically -- and only -- the causation.

We are not looking at any additional things that require -- as the judge has said -- we are not

1 looking at anything that requires experts.
2 So for the Defense to say there is no expert
3 or that there is no TBI is premature. We aren't even
4 discussing that.
5 I don't think it is appropriate for us to
6 discuss that at this time.
7 THE COURT: Does it really matter?
8 MS. NAVARATNASINGHAM: Your Honor, I am just
9 concerned that it is in the jurors' minds. And in the
10 presentation of evidence that we are about to see, I
11 don't want them to think it is something my client
12 caused.
13 THE COURT: Well, my view about this is these
14 were all remarks made during jury selection.
15 Generally, what they are going to be looking
16 at and what they are going to be hearing about is the
17 evidence in the case.
18 I really regret the use of the word
19 "traumatic brain injury." I misspoke, but I really
20 don't think it is going to make that much of a
21 difference in this matter, largely because even if the
22 issue were to come up -- which it is not -- it is
23 going to be something very different.
24 I mean, I don't have your verdict form in
25 front of me.
26 But is there anything about traumatic brain
27 injury in there?
28 MS. NAVARATNASINGHAM: There is no injuries

or damages on the verdict form. I am concerned, Your Honor, that they are going to be putting weight in that when that is not an issue in this case.

I didn't want to object yesterday. We were in the flow of everything. The potential juror said it.

I didn't want to make a thing about it, to expedite it.

THE COURT: If he doesn't show it, it doesn't become an issue, because the assumption that you are making is that it becomes a part of the evidence.

It is not part of the evidence. If you make an objection, it is going to be sustained.

So I am not inclined to do that.

MS. NAVARATNASINGHAM: Okay.

THE COURT: I don't think a clarifying admonition here for matters mentioned are going to be that important.

MS. NAVARATNASINGHAM: One more matter, very quickly.

Yesterday, when the jury -- after we came back from lunch, the jury was impaneled. They were seated. Before you took the bench, Mr. Rosario did get up in front of the jury and use his cane, and was doing stretches and back things in front of the jury, and I ask he refrain from doing that in front of the jury.

THE COURT: To the extent that is possible,

Mr. Rosario, I would really appreciate if you did your stretching or your pain relief exercises -- this is a private matter. You should take it back to the anteroom. I think the anterooms are open and available to you. So please do that rather than having that done in front of the jury.

MR. ROSARIO: May I do that? Because what happens if -- my spine like starts to relax and my vertebras fall out of place. It happens on a regular basis, so I have to do it about every hour or so for me because, otherwise, I get, like, lethargic and then I can't hear and then my vision starts to go out.

So in order for me to do that on a regular basis, to avoid this, I am going to continue to try to request small recesses for me to step away from here to go back in the back room to be able to readjust it because I need to keep clarity for my thought process.

That means that I totally agree --

THE COURT: It is 9:30. We will take whatever breaks you seek during the session within reason, all right?

All right. It is 9:30. We will bring the jury in.

(Whereupon, the jury entered the courtroom).

THE CLERK: Thank you for being here on time. We will get started in a moment.

A reminder to silence your cell phones, turn them off, whatever is your preference. Thank you.

We are here on the matter of Franciscus Dylan Rosario versus Subhi Abdelhalim, Case CGC-21-594102.

THE COURT: Thank you. Can I have appearances, please?

MR. ROSARIO: Franciscus Dylan Rosario for Plaintiff.

MR. KEEGAN: Evan Keegan.

MR. SOBATI: Good morning. Karim Sobati, legal advocate.

MS. NAVARATNASINGHAM: Good morning, Your Honor. Priya Navaratnasingham for Defendant.

MR. REYNA: Good morning, Your Honor. Alberto Reyna for Defendant.

A VOICE: Good morning, Your Honor.

THE COURT: Thank you for being on time. We are going to begin the trial.

The first -- let's say, for 35 minutes, I will be giving you some instructions about how the case is going to proceed. And these are out of the standard instruction manual that we received -- actually, every juror in the state hears roughly the same things, but with changes depending upon the nature of the case.

If you were in another county south or north of here, you will hear pretty much the same instruction.

So I will try to give you the name of the

instruction as I proceed so that kind of gives you a framework.

All right. So the first instruction is entitled, aptly, "Overview of Trial."

And let me see. Actually, the first is "Preliminary Admonitions." I am sorry.

You have now been sworn in as jurors in this case. I want to impress upon you on -- the seriousness and importance of serving on a jury.

Trial by jury is a fundamental right in California.

The parties have a right to a trial and to a jury that is selected fairly, that comes to the case without bias and that will attempt to reach a verdict based on the evidence presented.

Before we begin, I need to explain to you how you must conduct yourselves during the trial.

Please do not allow anything that happens outside this courtroom to affect your decision.

During the trial, please do not talk about this case or the people involved in it with anyone, including family and persons living in your household, friends and co-workers, spiritual leaders, advisors or therapists.

You may say you are on a jury and how long the trial may take, but that is all.

You must not even talk about the case with the other jurors until after I tell you that it is

time for you to decide the case.

This prohibition is not limited to face-to-face conversations.

It also extends to all forms of electronic communications. Please do not use any electronic device or media, such as a cell phone or smart phone, PDA, computer, the internet, any internet service, any text or instant messaging service, any internet chat room, blog or a website, including social networking websites or on-line diaries, to send or to receive any information to or from anyone about this case or your experience as a juror until after you have been discharged from your jury duty.

During the trial, you must not listen to anyone else talk about the case or the people involved in the case.

You must avoid any contact with the parties, the lawyers, the witnesses and anyone else who may have a connection to the case.

If anyone tries to talk to you about this case, please tell that person that you cannot discuss it because you are a juror.

If that person keeps talking to you, simply walk away and report the incident to the Bailiff or to our Courtroom Deputy as soon as you can.

After the trial is over and I have released you from jury duty, you may discuss the case with anyone, but you are not required to do so.

During the trial, please do not read, listen to or watch any news reports about this case, though I have no information that there will be news reports concerning this case.

This prohibition extends to the use of the internet in any way, including reading any blog about the case or about anyone involved with it.

If you receive any information about this case from any source outside of the courtroom, promptly report it to the Court Clerk or to my Bailiff.

It is important that all jurors see and hear the same evidence at the same time.

Please do not take anything I say as an opinion about this case; further, do not do any research on your own or as a group. Please do not use dictionaries, the internet or other reference materials. Do not investigate the case or conduct any experiments. Do not contact anyone to assist you, such as a family accountant, doctor or a lawyer.

Please do not visit or view the scene of any event involved in this case or use any internet maps or mapping programs or any other program or device to search for or to view any place discussed in the testimony.

If you happen to pass by the scene, please do not stop or investigate.

If you do need to view the scene during the

trial, you will be taken there as a group under proper supervision.

If you violate any of these prohibitions on communications and research, including prohibitions on electronic devices and research, you may be held in contempt of court or face other sanctions. That means you may have to serve time in jail, pay a fine or face other punishment for that violation.

It is important that you keep an open mind throughout this trial. Evidence can only be presented a piece at a time.

Do not form or express an opinion about this case while the trial is going on. You must not decide on a verdict until after you've heard all the evidence and discussed it thoroughly with your fellow jurors in your deliberations.

Please do not concern yourselves with the reasons for the rulings I will make during the course of the trial and do not guess what I may think your verdict should be from anything I might say or do.

When you begin your deliberations, you may discuss the case only in the jury room and only when all the jurors are present.

You must decide what the facts are in this case.

Please do not let bias, sympathy, prejudice or public opinion influence your verdict.

At the end of the trial, I will explain the

law that you must follow to reach your verdict.

You must follow the law as I explain it to you even if you do not agree with the law.

Now, there is a wrinkle here, and the parties have agreed to what lawyers call bifurcate the trial.

There will be two phases to this trial that you will participate in. The first phase will be to determine the threshold issues of liability and causation.

Once we have you proceed through the trial on that particular phase, you will be given instructions and then there will be a verdict form.

Depending on what your verdict form indicates, there will be a second phase with respect to what kind of damages might or could be imposed in the case.

Okay? So there are two phases. You will be part of both.

And, by the way, yesterday I mentioned something about traumatic brain injury.

That's what I understood the case to be. It may be something that is not part of this case, it is not a part of your decision-making.

We will have to let the evidence unfold in the case, okay?

So sometimes I read things and I over generalize; but in any event, we were able to sort out folks who had some concerns about those issues. Okay.

So the next item that we have here is an instruction which I give to folks who are concerned about legal meanings.

Some words or phrases used during this trial have legal meanings that are different from their meanings in everyday use.

These words and phrases will be specifically defined in these instructions.

Please be sure to listen carefully and to follow the definitions I give you. Words and phrases not specifically defined in these instructions are to be applied using their ordinary, everyday meanings.

Some of these instructions may not apply depending on your findings about the facts of this case.

Please do not assume just because I give a particular instruction that I am suggesting anything about the facts.

After you have decided what the facts are, follow the instructions that do apply to the facts as you find them.

Okay. So, next, "Overview of the Trial." Okay.

To assist you in your task as jurors, I will now explain how the trial will proceed, because I have already told you there will be two phases.

I will first begin by identifying the parties to this case.

As you know, Franciscus Dylan Rosario filed this lawsuit. He is called the Plaintiff. He seeks damages from Subhi Abdelhalim, who is called the Defendant.

Mr. Rosario claims that he sustained injury when the Lime scooter he was riding collided with Mr. Abdelhalim's vehicle. Mr. Abdelhalim denies that he was at fault for the alleged collision.

First, each side may make an opening statement but neither side is required to do so. An opening statement is not evidence. It is simply an outline to help you understand what the party expects the evidence will show.

Also because often it is difficult to give you the evidence in the order we prefer, the opening statement allows you to keep an overview of the case in mind during the presentation of the evidence.

Next, the jury will hear the evidence.

Mr. Rosario will present evidence first. And when Mr. Rosario is finished, Mr. Abdelhalim will have the opportunity to present evidence.

Each witness will be first questioned by the side that asked the witness to testify. This is called direct examination.

Then the other side is permitted to question the witness. This is called cross-examination.

Documents or objects referred to during the trial are called exhibits. Exhibits are given a

letter or a number so that they may be clearly identified.

Exhibits are not evidence until I admit them into evidence.

During your deliberations, you will be able to look at all exhibits admitted into evidence.

There are many rules that govern whether something will be admitted into evidence.

As one side presents evidence, the other side has the right to object and to ask me to decide if the evidence is permitted by the rules.

Usually I will decide immediately, but sometimes I may have to hear arguments outside of your presence.

After the evidence is presented, I will instruct you on the law that applies to the case and the parties will make their closing arguments.

What the parties say in closing argument is not evidence. The arguments are offered to help you understand the evidence and how the law applies to it.

So for each phase, we will be doing the same thing. Okay? All right.

Taking Notes During Trial.

You will be given notebooks and may take notes during the trial. Please do not take the notebooks out of the courtroom or jury room at any time during the trial.

You may take your notes into the jury room

during deliberations.

You should use your notes only to remind yourself of what happened during the trial.

Please do not let your notetaking interfere with your ability to listen carefully to all the testimony and to watch the witnesses as they testify, nor should you allow your impression of a witness or other evidence to be influenced by whether or not other jurors are taking notes.

Your independent recollection of the evidence should govern your verdict and you should not allow yourself to be influenced by the notes of other jurors if those notes differ from what you remember.

The Court Reporter is making a record of everything that is said. If during deliberations you have a question about what the witness said, you should ask the Court Reporter's records to be read to you. You must accept the Court Reporter's record as accurate.

At the end of the trial, your notes will be collected and destroyed.

A couple of other comments.

If you do miss something, you can simply raise your hand. If a witness is unclear -- that is, you simply didn't hear something or you are unclear about something -- raise your hand.

I don't want to have any questions, but we can have the -- the purpose of that is to have the

witness either repeat what he or she or they said or to have the Reporter read back to you what was just said by the witness. Okay?

So if that is the case, please do so. Sometimes I miss things. I will also, on my own, ask to have a witness clarify or to repeat a statement.

Secondly, you will not be handed the notebooks now.

The reason is because what the parties say in opening statement is not evidence. What I don't want you to do is to fold in the remarks of the parties in the opening statements with the actual evidence that is admitted into the case.

Even among the best of us, sometimes we forget. So I think it is much easier that we draw a bright line between opening statements and the content of those remarks from the actual evidence.

You will be presented with the notebooks after the opening statements are given so that you have an opportunity to record your notes from the actual evidence in the case.

All right. So the next instruction is entitled, "insurance." It is short.

You must not consider whether any of the parties in this case has insurance. The presence or absence of insurance is totally irrelevant. You must decide this case based only on the law and the evidence in this case.

"Evidence." You must decide what the facts are in this case only from the evidence you see or hear during the trial.

Sworn testimony, documents or anything else may be admitted into evidence.

You may not consider as evidence anything that you see or hear when court is not in session, even something done or said by one of the parties, attorneys or witnesses.

What the parties say during the trial is not evidence. In their opening statements and closing arguments, the parties will talk to you about the law and the evidence.

What the parties may say may help you understand the law and the evidence, but their statements and arguments are not evidence.

The parties' questions are not evidence. Only the witnesses' answers are evidence.

You should not think that something is true just because an attorney or the Plaintiff's question suggests that it is true. However, the attorney or the attorneys and Plaintiff can agree that certain facts are true. This agreement is called a stipulation.

No other proof is needed and you must accept those facts as true in this trial.

Each side has the right to object to evidence offered by the other side.

If I do not agree with the objection, I will say it is overruled.

If I overrule an objection, the witness will answer and you may consider the evidence.

If I agree with the objection, I will say it is sustained. If I sustain an objection, you must ignore the question.

If the witness did not answer, you must not guess what the witness might have said or why I sustained the objection.

If the witness has already answered, you must ignore the answer.

A party may make a motion to strike testimony that you have heard.

If I grant that motion, you must totally disregard the testimony. You must treat it as though it did not exist.

Witnesses. A witness is a person who has knowledge related to this case.

You will have to decide whether you believe each witness and how important each witness's testimony is to the case.

You may believe all, part or none of a witness's testimony.

In deciding whether to believe a witness's testimony, you may consider among other factors the following -- and they give five of them as an example:

A: How well did the witness see, hear or

otherwise sense what the witness described in Court?

B: How well did the witness remember and describe what happened?

C: How did the witness look, act and speak while testifying?

D: Did the witness have any reason to say something that was not true; for example, did the witness show any bias or prejudice or have a personal relationship with any of the parties involved in the case or have a personal stake in how this case is decided?

And E: What was the witness's attitude toward this case or about giving testimony?

Sometimes a witness may say something that is not consistent with something else the witness said.

Sometimes different witnesses will give different versions of what happened. People often forget things or make mistakes in what they remember.

Also, two people may see the same event but remember it differently.

You may consider these differences but do not decide the testimony is untrue just because it differs from other testimony; however, if you decide that a witness did not tell the truth about something important, you may choose not to believe anything that witness said.

On the other hand, if you think the witness did not tell the truth about some things but told the

truth about others, you may accept the part you think is true and ignore the rest.

Please do not make any decision simply because there were more witnesses on one side than on the other.

If you believe it is true, the testimony of a single witness is enough to prove a fact.

This is for our alternate jurors:

As an alternate juror, you are bound by the same rules that govern the conduct of the jurors who are sitting on the panel.

You will observe the same trial and should pay attention to all of my instructions just as if you were sitting on the panel.

Sometimes a juror needs to be excused during a trial for illness or for some other reason.

If that happens, an alternate will be selected to take that juror's place.

Next, "Bias."

Each of us has biases about, or certain perceptions or stereotypes of, other people.

Biases is a tendency to favor or disfavor a person or group of people.

We may be aware of some of our biases though we may not reveal them to others.

We may not be fully aware of some of our other biases. We refer to biases we are not fully aware of as implicit or unconscious.

It may be based on stereotypes we would reject if they were brought to our attention.

Implicit or unconscious biases can affect how we proceed and how we make decisions without our being aware of the effect of those biases on those decisions.

Our biases often affect how we act favorably or unfavorably toward someone.

Bias can affect our thoughts, what we remember, what we see and hear and whom we believe or disbelieve.

We may favor or be more likely to believe people whom we see as similar to us or with whom we identify, or we may disfavor or be less likely to believe people whom we see as different from us.

As jurors, you are being asked to make very important decisions in this case.

You must not let bias, prejudice or public opinion influence your decision.

You must not be biased in favor of or against parties or witnesses because of their race, national origin, ethnicity, disability, gender, gender identity, gender expression, religion, sexual orientation, age or socioeconomic status.

Your verdict must be based solely on the evidence presented.

You must carefully evaluate the evidence and resist any urge to reach a verdict that is influenced

by bias for or against any party or witness.

"Bench Conferences."

From time to time during the trial, it may become necessary for me to talk to the parties out of the hearing of the jury, either by having a conversation at the bench when the jury is present in the courtroom or by calling a recess to discuss matters outside of your presence.

The purpose of these conferences is not to keep relevant information from you, but to decide how certain evidence is to be treated under the rules of evidence.

Please do not be concerned about our discussions or try to guess what is being said.

I may not grant a party's request for a conference. Please do not consider my granting or denying a request for a conference as any indication of my opinion of the case or my view of the evidence.

All right. Two more.

"Why Electronic Communications and Research Are Prohibited."

I know that many of us are used to communicating and perhaps even learning by electronic communications and research; however, there are good reasons why you must not electronically communicate or do any research or anything having to do with this trial or the parties.

In Court, jurors must make important

decisions that have consequences for the parties. Those decisions must be based only on the evidence that you hear in this courtroom.

The evidence that is presented in Court can be tested. It can be shown to be right or wrong by either side.

It can be questioned and it can be contradicted by other evidence.

What you might read or hear on your own could easily be wrong, out of date or inapplicable to this case.

The parties can only receive a fair trial only if the facts and information on which you base your decisions are presented to you as a group with each juror having the same opportunity to see, hear and evaluate the evidence.

Also, a trial is a public process that depends on disclosure in the courtroom of facts and evidence.

Using information gathered in secret by one or more jurors undermines the public process and violates the rights of the parties. Okay.

And the last instruction is very short.

It is entitled, "Wealth of Parties."

In reaching a verdict, you may not consider the wealth or poverty of any party.

The party's wealth or poverty is not relevant to any of the issues that you must decide.

Very well. All right.

So we are going to enter the next phase of the trial where the parties have the opportunity, if they choose, to make opening statements to the jury.

Again, an opening statement is not evidence but merely a prediction by the party of what they believe the evidence will show. Very well.

How we doing? Ready, Mr. Rosario?

MR. ROSARIO: May I drink some water to prepare?

THE COURT: Of course. Each party has been given roughly a half an hour to give their remarks.

Do you wish to use the lectern, sir?

MR. ROSARIO: May I do an adjustment, five seconds?

THE COURT: Let's just take a 15-minute break now and then we will go straight through with the opening remarks, okay?

So let's come back at 10:25 and remember not to form or express any opinion about this case to anyone. Thank you.

MR. KEEGAN: Thank you, Your Honor.

(Short recess).

THE CLERK: Please remain seated and come to order.

THE COURT: All right. The record should reflect that we have all parties present. As I mentioned, this is the occasion for opening statements

or opening remarks by the parties in this case.

Our Court Reporter has asked to -- sometimes folks appear in the well, which is the area right between the Reporter and Counsel table; sometimes we use the lectern.

It is the request of our Reporter that the parties speak from their Counsel table largely because not only the listening, but he is also watching their lips.

So whatever makes it work for our record, the better.

So we will start with Mr. Rosario.

Mr. Rosario, you may begin with your opening remarks.

OPENING STATEMENT

MR. ROSARIO: Good morning, San Franciscans and jury members. We appreciate you being here. I am grateful for each one of you.

It has been four years. I was struck in February of 2021 and it has taken a long time to get here before you. We didn't think we could make it.

I am self-represented now. I don't have an attorney, but the equation didn't work for them so I will suffer for that.

Who I am. Today, no matter what the outcome of this trial is, I have two grandsons and that is all I need.

They are going to be all the happiness I need. That is it.

I mean, whatever happens here, I have already been blessed, I am grateful.

I am not a professional attorney. But what I do in my life today is I am a scientist. I have worked in artificial intelligence, cognitive artificial intelligence and cybernetics since 1998, my first job out of Netscape. I designed massive systems for companies like Orvil or Samsung, IBM for years.

And in 2019, I founded a company with my business partner. We started designing separate systems for companies like Google and Amazon and we left our big corporate jobs and decided to strike off on our own like a lot of San Franciscans generally do.

The case is split into two parts. The first one that I am meaning to do is -- to get your verdict on, is about the causation, whether I was hit or not. And we understand that that is going to be the fundamentals of the first part of the argument.

The Defense has stated multiple times under oath that he never touched me with his vehicle. That is still the standpoint right now.

And if you can imagine the chain of events that happens when there is an outright denial if somebody says that, hey, you hit me with a vehicle and the other person goes, no, I didn't, you have to prove that. And when the other person denies it, it causes

a chain of events, all sorts of things happen.

Whether it comes down to paying for, you know, physical damages that a person has, lots of things become unavailable to you until you are able to prove that fact, and at this part right here that we are going to be going over until we get to the damages, I don't want to get into a lot of the things about how I feel because those aren't relevant right now.

The most important thing is for us to understand and to establish whether I was hit by a vehicle. Was it more likely than not that I was hit by a vehicle? Was the other party negligent in that behavior?

Were they negligent? Did they follow their duty of care? And what happened immediately afterwards, like during the collision, that will establish a number of different things that happened for us next.

We want to get this out of the way, because the most important part is for us to be honest and truthful, for us to have candor and tell the truth regardless of how much we might be in trouble.

If we all walked around in our society and we decided that I did something wrong and we can just avoid it and then say, oh, well, you know, and deny our own accountability in those things, we wouldn't really have things like the Court because this is

taken care of.

When a person states that a wrong has happened, they have a duty, an obligation in society to set that record straight, not deny it for four years, where a person loses everything they have, their home, their career, their physical body.

Those things are not fair. A person is obligated to tell the truth from the moment something happens.

And you can't leave a person hanging for almost a half a decade. We are going into five years.

And all I want is for the truth to be told. I am going to present evidence that is less than a criminal situation.

This is more likely than not, that means 51 percent. Was I hit? Was there a duty of care to be taken care of?

Was the driver obligated to report the situation properly and honestly with candor regardless of his income or my income or anything?

The people that you see around me are my family. They have been -- my poor wife, she has been really, really, really strong through this.

These people don't even know how much pain I have to stand. And then try to do this by yourself, it is unfortunate, but we took a gamble on you people in San Francisco here that you guys will see the truth.

We believe that you guys are smart. The Defense doesn't think so. They think that by omitting words, that you are not going to see through the veil.

The job of a Defense oftentimes means they want to limit things to make sure that you don't get emotionally charged. Also they want to make sure that the evidence that I present to you is the only thing that you judge this case upon. But remember, it is only a 51 percent, is it more likely than not.

We have a coin, we throw it, and it constantly comes up heads and you have a probability and you will sit there and you are going to say more likely than not it is heads, you can come to that conclusion.

That is what gives us this capability to have these amazing courts. Mr. Wong is doing his job with me.

I am a Pro Per. I don't know what I am necessarily doing here. I am fumbling through it. I am doing the best I can.

He admonishes me and he constantly tells me what I should not be doing.

What I do know is -- I should be doing is I should be presenting things to you and telling you the truth and being transparent in everything I say and do. Because what else do we have left in our society?

Mr. Keegan and Victoria, my wife, Miss Rosario, will be providing occasional medical

1 help to help me adjust --
2 MS. NAVARATNASINGHAM: Objection.
3 THE COURT: Overruled.
4 MR. ROSARIO: -- I will be going back to make
5 sure that I am not interrupting the proceedings. I am
6 going to do my best to make sure that you guys are
7 informed. The integrity of my case is based upon
8 transparency with all of you and the opportunity for
9 each of you to see the evidence that is put in front
10 of you.
11 You have to be completely objective in this,
12 right?
13 And if you were to sit there and you were to
14 see the evidence, then I guess at the end of it is to
15 say: Hey, you know, what would I think? And you use,
16 to the best your ability, common knowledge. And
17 obviousness is a very important part of this case.
18 I do not have experts in this portion.
19 We have simply facts, all right, business
20 records and those things in this portion of the case.
21 Actually, if you guys are still with me and
22 if we do have a damages section, I am going all in on
23 this right now.
24 This is literally -- by bifurcating this, I
25 am taking a chance that you guys will see what I have
26 experienced, you are going to look at the facts and
27 you are going to determine whether the Defendant hit
28 me with his vehicle, if he operated and followed the

duty of care, whether he is liable for the damage that I am telling you that he caused to me and will present a number of different things, and you guys will come to a verdict that shows the honesty and the goodness truth of the people of San Francisco, that you guys are not fooled by, you know, diversions and misrepresentations.

That is part of it. Several of you, I believe, are attorneys. And you are highly educated individuals who have worked in your fields. And I respect that.

I am hoping all of you draw upon your common sense, your knowledge that an organization such as these Courts just trying to make sure you guys are capable of seeing everything in the most fair light. They have to protect the Defendant from people trying to come in and defraud the courtroom in the Courts.

People do that across the country. Rest assured this is not happening here today. This is not what I am here for.

I am here to make sure that me and my family, my team, my former employees who have had to furlough, all of those people, one hundred plus people -- the reason you saw all those witnesses on that list, because all those people are standing behind me saying what happened was wrong, and it is all upon me to make sure that you guys have the evidence necessary and put it in front of you.

I might not be able to reach the level of standard that Judge Wong or this Court or just the law requires to get the evidence in. I am going to make my best effort, but remember this is a preponderance of the evidence, 51 percent.

I might not get a couple of them in but it comes down to the total weight of all of the evidence that I present, one or two of them might not get in, but you look at the group of it, is it more likely than not that these things happened.

I don't want to get -- like I said, I am not going to talk about the damages or the things that I am suffering, my alleged suffering is what the Defense says.

What I want you to talk about right now is the evidence showing that I was hit and that the Defendant is liable and should have reported that.

Imagine four years of being told that that never happened despite all the things that you will be able to see.

Matter of fact, we have a gentleman here who is going to help us today.

And he will be back shortly, Officer Fernandez.

MR. SOBATI: He was here momentarily.

THE COURT: Witnesses have been asked to remain outside the courtroom during opening statements.

MR. SOBATI: Thank you.

MR. ROSARIO: Officer Fernandez was kind enough -- and I believe that -- you know, at first, I had imagined and thought we were sitting in a situation where I was going to have to go ask the police. I realized truthfully what we have to do is explain that.

The Defense, I don't know what his motivation is, I am not going to imagine it. Just like I had spoken to the jury yesterday; she didn't know what my motivation was, she didn't jump to conclusions.

Some people think I have been motivated by money.

I had already owned a multi-million-dollar business. I am an artificial intelligence architect. I can get jobs at companies that pay me very, very well.

This is not why I am here.

I am here because all the other people have had to sacrifice to help support me for the last four years till we got here.

They believe that I deserve justice, you know, and I am not --

There are, there are pieces of information here in this -- that are going to be brought before you and they are going to be very disturbing, the images, videos, the calls might make you really, really upset.

And I do not want you guys to base this on your emotions about what the Defendant did, okay?

I want you to do this logically. Just imagine if it was your mother, your brother or whoever you want to think that did this and you have to rule in a manner that the Court would see that you guys did not do it based upon emotion.

Some of the things you are going to hear, and then you kind of go, oh, wow, this was said and these things happened, and then we are here today with a complete denial that Mr. Rosario was ever even touched by the vehicle.

You are going to go, all this doesn't add up. Why is the denial still happening in four years? Why have they left him out to hang and dry?

Now, that is a kind of a different portion of the calculation.

The calculation is going to be that, that liability and causation. And what that does for me is it opens up -- because right now, I do not have experts and there is a reason why -- you know, I am able to say I don't have the financials.

But he told you not to judge me based upon my financial capacity, but I do not have experts, experts are required, money is required for experts unless you have them non-retained.

I also messed up in not including certain people onto my documents early and because of that I

have been denied them.

I have failed in my protocol and in those things. It doesn't mean I didn't try.

My treating physicians, no. That is, again, damages, not right now.

We are going to talk about those things later. Right now we are going to establish whether Mr. Rosario, myself -- once in a while I will talk in the third person. When my family sees me do that, when my students come to my laboratory and I teach mathematics, I teach physics -- I studied, in my graduate studies at Berkeley, also under (inaudible) also Stanford.

I am a scientist. I am a businessman. And I owned a company. And this is really, truthfully -- I guess, if you say -- this is almost like the Montegue/Capulet situation. This is the Rosario family and my company against Abdelhalim, who refused to take accountability when given the opportunity. Two years later, he was deposed, and still again refused to say he even touched me with his vehicle.

Now today, still -- yesterday, before a jury of 122 people -- said that his vehicle never touched me, it was not his fault. He had nothing to do with it.

Matter of fact, he claims he was just driving by as a good citizen and found me crying on the sidewalk.

And those things you can imagine all this weight and this denial over the years. This is not a criminal case.

Some people might call what he did criminal. It might very well be. There are certain factors in there and I don't know how to assess them. I am not a prosecutor.

But you are going to see and hear the evidence that is before you that is going to show that Mr. Abdelhalim has been avoiding accountability since day number one.

He had called the 911 services from his phone on my behalf. So I can make a dying declaration to my children and family while I was dying on the sidewalk, I thought I was dying, and I needed somebody to record something.

Mr. Abdelhalim called and in the call he said he is calling on my behalf and I sent a message, with a collapsed lung, to my children and my family to tell them who had possibly murdered -- that was my recording, my message to my family.

And I survived. The people at San Francisco helped me, kept me from dying.

And in the face of this type of situation, when an individual like me -- I can write quantum physics equations, I am not stupid.

What I don't appreciate is a person, when in the face of all the facts, still can't take

accountability. Accountability and the truth is what matters in this courtroom.

When the truth comes out and a person has denied and denied and denied for years any -- any involvement, that causes this kind of what you would call a back pressure of things that happen in a person's life.

And then when it is found and that truth comes out, accountability is to be served and it is served by you.

I am no vigilante. I don't do those crazy things like that one guy in New York that went after the -- that is not me.

It is better to have -- in the Court, in the public court, to be exonerated and for the people to say yes, Mr. Rosario, your story is true.

And we do not reward people for lying and denying things for years. That is inappropriate.

No society can do that. Sometimes they do, you know. Look at what is going on in Washington, DC. We all know what is going on over there. Whatever side of the story that you are on -- but, you know, Mr. Rudy Giuliani, he makes decisions and how he does it, he is an attorney.

So not even attorneys are immune to the situation of telling the truth. So remember that. We are all human. I am a human. Every child deserves the rights that I deserve, too.

For those of you who have children, I have grandchildren, too, I have two beautiful grandsons born during this trial that I haven't been able to see yet because I am stuck here making sure that the truth so my grandchildren will know: Grandpa, where were you when I was born?

I was in San Francisco making sure that the honest truth comes out and then I can come and see you.

They are precious to me. Two grandsons in like a month. Both my daughters were pregnant during the same time. It was amazing.

And like I said, that is the only gift I needed. If nothing comes out of this, I am indifferent.

One of the things that I have just learned about a witness who very well could be dead -- I don't know -- he left a message for me and we are going to present that. Whether it is admissible, whether you guys put any weight on to it or not, my dying declaration was for my children and this man had left a recording.

Mr. Fernandez is going to be here and we are going to talk about what that is.

And there are some really important things out there we will share later on in this trial or in the next couple of days.

Sorry. I will sit down for a minute. You

are fully capable of using your common sense and your compassion. I mean, this is not for me. Your compassion is also for the Defendant.

What would motivate somebody to deny something for so long, and is that correct?

That is upon you as a jury and the peers, the good people of San Francisco, to decide.

That is a pretty serious allegation I put against the Defendant here, to carry on the lies that he never touched me with his vehicle for four years. It has got to this point.

Sometimes when people lie they just can't back out. Mr. Giuliani, he has a problem with that. He is going to back out and let it go for years.

Mr. Abdelhalim has done that as well. He doubled down going so far as even saying that I fabricated all of this.

I just want to go see my grandchildren as soon as I can and get this part over.

And I am hoping that each of you is capable of seeing through the misdirections, the lies and the things or the limitations that the Defense is going to make an attempt to do.

They are going to challenge every single bit of evidence, not because it is fake, but because it damages their case.

Every single time, another piece gets weighed on the scales of justice.

It is a beautiful system and Mr. Wong has spent his life providing that for people, all right?

I disagree with Mr. Wong sometimes on things that I believe are narrow, and my misinterpretations, oftentimes he corrects me and he says, Mr. Rosario, you are wrong, you can't do that, that is not how this thing works.

You know, justice is a beautiful system in our country and I want all of you to understand that I absolutely respect it, but I am also going to stand up and I am going to fight when I think it is -- something inherently inside my heart doesn't feel right.

Sometimes there are rulings and he goes, well, Mr. Rosario, I can't tell you how to practice law but maybe you should go look up how to properly do this part.

There is a mechanism, I won't deny it for you. Oftentimes, anxiety as a result of the trauma that I personally experienced, my personal anxiety is very real for me and it echoes through an entire organization of people: My four children, my four sisters, my mother. I mean, it goes on.

I wanted to speak to you organically without some kind of prepared letter because it comes down to the transparency part, you know.

Am I believable? The preponderance of the evidence that is going to be put before you, like I

said, some is going to be disturbing. The Defense is going to say that I am going to elicit too much emotions from you.

But it is just fact. These are business records, police records, hospital records. That is all we are going to look at right now.

I am not going to say anything about what they mean. I will theorize on things. Like I said, I am not an attorney, I am not a prosecutor. But I want you to reach down and look and say: Is this right? Does this make sense? All right.

That is what the beautiful part about the jury is, that even if -- even if Mr. Wong says sometimes it could be just one, one witness can tip the balance for you or one piece of evidence.

And that one piece of evidence holds so much weight that I could have a thousand more, but that one just rings clear that there is honesty or there is deception.

Those things are the things I want you to pay attention to at this first stage.

I have taken the time to hear each of your story and I respect and appreciate all of you.

I think what you guys are doing here today means the world to my family, to us, my wife. And I -- we tear up seeing you guys coming in.

It is like watching the opening of The Bachelor where all the maidens come in, right?

It is like we get to go through this journey with you. You guys get to see me bare my soul.

Wouldn't it be just grand if the Defense's story hadn't fabricated all this?

This man happens to be one of the best damned actors I have seen in the most elaborate con game.

Why would I sabotage my own multi-million-dollar business for these things? It doesn't make any sense.

You've got to think: What is my motivation to even claim it, to throw myself in front of a truck? They will come at me with everything.

They say, he throws himself at a truck to make money. I was already making money.

The absurdity of the Defense's position just makes me laugh after four years, you could go okay, you know, I am grateful to create all of this that we can sit back and we can laugh at the humor of our human condition, of what we learn from one another.

That human condition is what we then put -- the premise of our entire society, the structure from which we treat each other, the respect, the sanctity from each one of us as we understand who we are, what we mean to each other and how we are appropriately suppose to treat one another.

There are different laws. And whether you come from Saudi Arabia or Palestine or Israel or London or Germany or South America or the

1 United States or Mexico or wherever, we all understand
2 the fundamentals of human rights, the right to life,
3 the right to continuity of your body, that should your
4 body ever be violated that the other person is capable
5 of taking accountability for that.
6 There are many people in our society who are
7 physically harmed. Sometimes harms can go even beyond
8 just your physical body.
9 THE COURT: Mr. Rosario, you have two minutes
10 left.
11 MR. ROSARIO: Okay. Like said, I am going to
12 do my best to ensure that I follow Judge Wong's
13 guidance and this Court's guidance.
14 I am a self-represented litigant. I have
15 made this decision because it is only fair that I am
16 not putting an attorney at risk for something that is
17 still -- or anybody at risk for something that is
18 still undecided as far as the causation, and the case
19 and the information is so profound; it is very
20 disturbing, some of it.
21 And like I said, the implications, the back
22 pressure of the denial, even today -- yesterday,
23 everyone heard it. He says, no fault, no touch,
24 nothing, I claim nothing, there is no reason
25 whatsoever that Mr. Rosario has any claim against me.
26 Imagine -- fast forward four years. If you
27 see any information that even gives you a 51-percent
28 more-likely-than-not that Mr. Abdelhalim -- then it

causes an entire chain reaction, that based upon that one denial -- and I want you to understand that there is a lot weighing on this decision from you.

And so you have to look at it and say: Is it more likely than not that Mr. Abdelhalim caused this?

And how can you understand from my position that I am not -- I don't wish it on anyone? I didn't wish that this happened.

We could have settled this a long time ago with him, he and I.

MS. NAVARATNASINGHAM: Objection.

THE COURT: Sustained.

MR. ROSARIO: This is not grounds, I am not talking about money, I am talking about the truth. He could have had the truth come out, okay?

And that is all that we are asking for here, is for you guys to see the evidence that we all see and determine on the truth of this.

But from there, I am going to sit back and I am going to think about how to present the information to you in a very logical cohesive manner that is not embedded with emotion or conjecture.

I am not going to provide anything like that at this stage right now.

We are going to look at facts, evidence and videos and things like that, that have nothing to do with me determining damages.

This stage right now has nothing to do right

now with money, at least in my eyes.

This truly has to do with: Is his denial after four years true or false?

Is there enough information there from the collection that you guys are going to see that you have determined that he did indeed hit me and he caused the injury that I am suffering, that I suffer, and then we can go forward from there.

And I appreciate you guys, all of you. I am so grateful, my whole family is grateful for you to be here. And I admire all of you.

I personally have never been on a jury yet. So experiencing it from this side is surreal and I can imagine for you guys, to sit there. So I appreciate it. I have taken up my time. I guess the Defense is next.

Again, thank you. I appreciate you all.

THE COURT: All right. Thank you.

MS. NAVARATNASINGHAM: Your Honor, I think Defense will reserve our opening until our case in chief.

THE COURT: Very well. All right. Do you want to call your first witness, please?

THE CLERK: Your Honor, if I could take out a moment to pass out the juror notebooks.

THE COURT: Yes, thank you.

MR. ROSARIO: Before we call a witness, I would like to establish what I guess you would say is

the theory of my case right now at this point.

THE COURT: Well, no. That is part of your opening statements, sir. I gave you half an hour.

Now, if you want to tie it all together.

MR. ROSARIO: I am going to explain --

THE COURT: Explain it during your closing statement in the case. All right?

MR. ROSARIO: Thirty minutes is insufficient.

THE COURT: I am not going to allow you to do that.

It is now time to call your first witness in this matter.

MR. ROSARIO: All right.

Officer Fernandez, we are going to locate him here in the courthouse.

THE COURT: He should be outside.

MR. ROSARIO: So I guess the proper way --

THE COURT: Sir, let's just wait until everybody has their notebooks. And we are going to call Officer Fernandez now.

Step forward, sir.

(Whereupon, Officer David Fernandez was called as a witness and sworn to testify as follows).

THE WITNESS: I do.

THE CLERK: Thank you, please be seated. Could you please state your name and spell it clearly for the record into the microphone.

THE WITNESS: David Fernandez, D-a-v-i-d,

F-e-r-n-a-n-d-e-z.

THE CLERK: Thank you.

THE COURT: Thank you. You may inquire.

DIRECT EXAMINATION BY

MR. ROSARIO: Q. Okay. I am going to offer the deposition of Officer David Fernandez that was taken by Esquire on March 10, 2023 also.

And I have all the copies necessary that was requested, with the Bates stamps on everything.

MS. NAVARATNASINGHAM: Your Honor, I object. I believe a certified copy is required for trial.

MR. ROSARIO: We have the certification. The Defense has been served that already. We have the proof of service.

THE COURT: Okay. Do we have a copy of the deposition transcript? We don't have a sealed copy?

THE CLERK: We have no copy actually.

MR. ROSARIO: We have provided those in pretrial.

THE COURT: Let's do this: First thing I want you to do, since we have Officer Fernandez here, is for you to ask him questions, and then we will address the matter of the deposition transcript later.

Is it parts of the deposition transcript, all, some or --

MR. ROSARIO: For this part -- we are going to bring him back again in a little bit.

This first part is we are going to establish a couple things.

First I want to make sure that Officer Fernandez is the one who had taken the report and other things. So I guess I can start.

And the Defense is going to claim that they never got this.

They were actually -- the Defense was actually --

THE COURT: Sir, the only thing I want you to do right now is to proceed with Officer Fernandez's testimony.

You are here to elicit his testimony.

MR. ROSARIO: Okay.

THE COURT: Part of his job is to be here in response to your request. So please move forward with the direct examination of Officer Fernandez.

MR. ROSARIO: Q. Do you mind if I sit down, Officer Fernandez?

A. That is fine.

Q. Very good. And I guess, if you don't mind, tell the Court and everyone what you do in your daily job and what you do as a job duty, I guess, on a regular basis.

A. Yes. I am a police officer for the City and County of San Francisco and I respond to a call for service and I take police reports.

Q. And do you sometimes do traffic and other

1 situations like that? I know there is a number of
2 different variations of the law. Correct?
3 A. Yes.
4 Q. And the different types of laws, for example,
5 vehicle codes, there is penal codes and things like
6 that.
7 How does an officer -- for you, do you see a
8 lot of different types of calls on a regular basis?
9 A. Yes.
10 Q. Excellent. And are you familiar with the
11 call -- I am sure -- you have been in here many times
12 with the contention.
13 Are you familiar with the situation that
14 happened between myself and Mr. Abdelhalim on
15 February 4th of 2021?
16 A. Yes.
17 Q. Now, were you personally at the scene when
18 the collision happened?
19 A. No.
20 Q. Okay. And so the details and material that
21 you wrote in there, none of that is actually
22 eyewitness; is that correct?
23 A. Sorry. Can you clarify the question?
24 Q. So you wrote down details about the
25 collision, the details like drawings and stuff like
26 that, that you entered into the record.
27 None of that actually came from -- for
28 example, the details of, Rosario was hit or whatever,

1 those were all taken from statements from people that
2 were at the scene.
3 MS. NAVARATNASINGHAM: I object. It lacks
4 foundation, it is vague and ambiguous.
5 THE COURT: Sustained. You have to
6 establish: What are you talking about?
7 It is in a vacuum right now for the jury.
8 So please elicit some foundational
9 information from him about what he did or did not do.
10 MR. ROSARIO: Q. There was a police report
11 that was recorded and you filed which has an incident
12 number, correct.
13 A. Yes.
14 Q. Okay. And I believe here -- and I will ask
15 you a question that kind of -- you probably would be
16 able to remember, you were the author of that report
17 and you had stated before that -- the other officer, I
18 believe, is Officer Orengo, who had taken a statement
19 from the Defendant, you identified him.
20 You weren't necessarily there but you were
21 given some information -- correct -- from Dr. Orengo?
22 A. Correct.
23 Q. So who did Officer Orengo -- he received the
24 statement from Mr. Abdelhalim, correct?
25 A. I believe so. I don't remember exactly who
26 spoke to which party but I know he was on the scene.
27 Q. All right. We will be able to show that from
28 body cams from other people, I think Officer Orengo.

That will be available later.

So Mr. Abdelhalim had made a statement to Officer Orengo. He had provided that to you.

And so there was no, there was not necessarily any reason to either believe or disbelieve Mr. Abdelhalim's statement, you just took it, correct, and you just write it down and that is what the situation is; is that correct?

MS. NAVARATNASINGHAM: Objection, it lacks foundation.

THE COURT: Sustained.

MR. ROSARIO: Q. The foundation is: Was Mr. Abdelhalim under oath when you took the statement?

A. Sorry. What do you mean by "under oath"?

Q. Miranda rights, under oath. Did you read Mr. Abdelhalim his Miranda rights before he made a statement?

A. No. He was not under arrest; so, no.

Q. Did you read me -- anyone in the scene, myself -- my Miranda rights?

A. No.

Q. Okay. The officers that are there, can you tell me the protocol -- when an officer arrives, for example, a traffic collision, would you guys make judgments, or do you guys just collect the information and provide that in a report? Which happens?

A. We just collect statements from parties involved; witnesses; we canvas for video and take

photos and put them in the police report.

Q. So you officers do not declare who actually is at fault; they just collect information for potentially later unless there is some kind of evidence, right?

A. Right. So when I write a police report, I do have to choose the party who was at fault based on the facts that we have at the time. So, yes.

Q. Right. Do facts -- are statements from witnesses or parties involved facts, or are they just statements?

A. I mean, we take statements from witnesses who claim things and then based on damages, based on the totality of the circumstances, we determine who is at fault.

Q. So I am asking a kind of a question on that. We will expand on that.

If, say, for example, two parties got in a fight on the street and they both blame each other, how do you find out who is at fault then if both parties are blaming the other person?

A. That is why we look for witnesses or video; if there is no third-party witness, then maybe based on the injuries. But every situation is different.

Q. Excellent. Excellent. So that is great.

Do you recall there being any witnesses other than Mr. Abdelhalim and myself?

A. I don't believe so.

Q. You do not recall?
A. Yeah. I don't recall.
Q. You don't, correct? There could have been, correct?
A. Correct.
Q. And I believe that you arrived at the scene at a pretty late time. Correct? I mean, you weren't the first officer on the scene.
A. Correct.
Q. Right. And so you personally -- even though you wrote the report, you didn't have all of the information, correct?
You were getting reports from the other officers in order to build your report. That is what you said in your deposition.
A. Yeah. So an officer had provided me a statement or information from the parties, then I wrote the police report.
Q. So, you know, I have heard officers and other people say that they are able to tell when somebody is being dishonest or something like that.
I am not asking that you were or that you know whether anybody was dishonest, but that does happen, people do give false police reports, correct?
A. Are you asking if -- people, like the police?
Q. Yes, sir, that people have given lies or false reports in your knowledge or experience.
A. I mean, people can lie, yes.

Q. Okay. So it is a possibility?
A. Yeah.
Q. All right. So if it is possible that a person can lie to an officer and if the information that was given for one party to you could have been false and the information is collected to -- at least of the best of the officer's ability, you don't take responsibility if somebody falsely reports the information, you are just there to record it as they state it, correct? You are not making a judgment on whether somebody is telling the truth or not, it is a recorded statement.
MS. NAVARATNASINGHAM: Objection, vague and ambiguous.
THE COURT: Sustained. Rephrase it, please.
MR. ROSARIO: Q. Your job is to record, as you stated earlier; you do not determine whether a person is telling the truth or not; is that correct?
A. If there is evidence that shows that they are not telling the truth, then I can state that in my report.
Q. Okay. Good. So, for example, if you were told that somebody did not do something, you have to take it prima facie that that is what their story is and you just have to record it. You are not going to try to unpack it.
So in this case, since you did not take Mr. Abdelhalim's statement directly, you were

incapable of right now telling us whether you felt that he was being honest or not; is that correct?

A. Correct.

Q. Okay. So it says right here that there were statements recorded on the body cams -- the body-warn cams in your statement before.

And so -- and it says that -- that it wasn't recorded, from what I saw on my footage, but there were three other videos at least.

So there was statements based upon a number of questions that people had asked, particularly -- I believe right now that, particularly, the statement that Mr. Abdelhalim provided to your fellow officer -- and like I said, Mr. Abdelhalim is responsible for his statement, not the officer;

The officer just records it, officers don't make up statements for people, as far as we know.

MS. NAVARATNASINGHAM: Objection. Is there a question?

MR. ROSARIO: Yes.

THE COURT: Sustained. Please ask a question.

MR. ROSARIO: Q. All right. The question is that -- that you: Did you read over Mr. Abdelhalim's statement that he made?

A. What do you mean "read over"?

Q. Yeah. Did you read it before you put it into the police report?

A. I believe Officer Orengo verbally provided a statement.

Q. Okay. Thank you. So that was -- essentially, is that considered hearsay when somebody gives something to somebody else?

MS. NAVARATNASINGHAM: Objection, calls for a legal conclusion.

THE COURT: Sustained.

MR. ROSARIO: Okay. Well, I think it is. I think the opposite of anyone else would agree. But here we go.

MR. ROSARIO: Q. So the Defense had clearly stated to Officer Orengo, this party, now, who collected my statement -- do you know who that was?

A. I don't recall.

Q. Oh, you don't recall who collected my statement. Is that recorded anywhere, who collected my statement in the matter?

A. I am not sure. Yeah, I am not sure.

Q. Okay. So we only have one statement from one party. We have a statement from Officer Orengo about Mr. Abdelhalim, but we don't know who collected mine.

Are you familiar with the condition that I was in, based upon the report?

A. Sorry. What do you mean?

Q. The physical condition I was in, the condition I was in when the officers arrived and when they departed.

I think you were there. I saw your body cam. You had me -- one of my employees had come to the scene and picked me up.

I recall seeing your body cam that you had recorded that. Thank you very much for recording it.

But I didn't see any actual recording of a statement from any officer so I was trying to figure out if you had seen it somewhere else or if it was delivered to you verbally from another officer or anything like that.

THE COURT: Mr. Rosario, you are giving him too many questions to answer.

You have to give him one question at a time.

We operate not from having you give a narrative or him giving a narrative, the witness giving a narrative.

We operate in bits and pieces.

So you have to ask your question in, essentially, steps.

All right. So for each question, you have to let him finish and you have to be clear where you are coming from.

MR. ROSARIO: Q. Okay. So what we are going to establish here is that there was a clear, party admissions from Mr. Abdelhalim to Mr. Orengo. We do not know who collected my statements.

A. I don't remember which officer spoke to you.

Q. Okay. Yet they decided, I believe, somewhere

along the lines that this was a traffic situation. That is what the report says.

I am not going to tell everybody what I believe it was, I guess. But from the record, it says there was traffic situation -- there was -- between -- and the statement says that there was a motorized vehicle collision between a scooter and a vehicle.

And from what I saw, it says that I was to blame and somehow or another Mr. Abdelhalim's statement was collected but we don't know who collected my statement.

Is that a typical thing for officers to make a determination from a single statement from one single party?

A. Sorry. Can you repeat your question?

Q. The determination that I was at fault in the police report, even though you weren't there, you said that you never received any information about who collected mine, no one told you who collected my statement.

We have one statement from the Defendant, none from me. It was established it was my fault for the -- for a, quote, vehicle classified collision and that is where we are at right now.

I am making sure we are all on the same page. I am not blaming you. What I am trying to say --

MS. NAVARATNASINGHAM: Objection. I don't understand the question. Vague and ambiguous.

THE COURT: Mr. Rosario, you have to ask a question. No speeches, please.

MR. ROSARIO: Q. Did you determine the fault based upon both of our statements or based upon one statement, sir?

A. I believe based on both statements. I know a officer spoke to you. I don't know which officer on the scene spoke to you. And then based on the information that was relayed to me, that is how I determined how to write the police report.

Q. You don't recall which officer relayed that they spoke to me?

A. Correct. It was in 2021 so I don't remember.

Q. Okay. But that wasn't listed either in the police report, or there is no body cam at least that shows an officer having a conversation with me about my portion of the story.

So at least we are at this point right now --

MS. NAVARATNASINGHAM: Objection.

MR. ROSARIO: Q. Do you feel that your report, Officer Fernandez, is 100 percent thorough, to the best of your ability?

A. I would say that I wrote it as accurately as I could based upon the statements provided.

Q. Yeah. I think you did.

THE COURT: All right. You need to ask questions. There is no editorializing, Mr. Rosario. Just please ask him questions.

MR. ROSARIO: Q. All right. We are not completely through with this yet. I was about to start into the next part of this, all right, which was to establish when you arrived at the scene and when somebody says that something has been done, all right, like for example, somebody got hit at a bar, let's say that.

You go to a bar. You arrive at the bar. Somebody says I got beat up or stabbed or hit, or hit with a beer bottle, and they are telling you this.

What is the process that you do to collect witness information at that time?

Say everybody has been drinking at the bar. One guy says I got hit. He says that guy did it to me.

Do you ask people around the scene? Do you only ask the people who were fighting? How is that determined?

MS. NAVARATNASINGHAM: I object, incomplete hypothetical.

MR. ROSARIO: This is absolutely to do with how he collected the information and how he came to the determination --

THE COURT: Okay. So anything that you are -- when you speak about a DUI or some sort of event relating to alcohol usage, that is not relevant in this case.

MR. ROSARIO: Okay.

THE COURT: If you want to ask him what he does to go about performing his investigation, you may do so, but we don't really need a wind-up for this.

Just ask him a question head on.

MR. ROSARIO: I am being rushed through this. All right?

THE COURT: No. I am not rushing you. I would like for you to ask the officer the questions you need to establish whatever part of your case you would like, but your narratives; but, sir, your narratives are unnecessary.

The process is such that you must ask foundational questions in order to get him to answer whatever you would like him to answer. Okay?

MR. ROSARIO: Q. Okay. All right. Okay. We are going back to that.

To clarify, you don't know who took my records, somebody told that you they took a statement from me. Yes or no.

A. Correct.

Q. The statement from the Defendant was collected by another officer and that was verbally delivered to you correct. Yes or no?

A. Yes.

Q. The multiple officers -- was it you alone or multiple officers that determined the fault in the report itself?

A. I determined.

Q. Okay. And what mechanism do you do to do that?

Do you take all the evidence or do you just make a judgment call at the time.

A. I take all of the statements and evidence and I make the decision.

Q. Okay. Are you aware that those statements can have implications for people legally?

A. Yes.

Q. Okay. If one person makes a statement that somebody has attacked them, how do you handle that?

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. When I made a statement that the Defendant hit me with his vehicle, how did you handle that?

A. Were you speaking to myself or another officer?

Q. I was speaking to all of the officers at the scene.

A. Okay. Sorry. What is the question again?

Q. I said I made multiple statements under video camera as well as to the 911 department that he hit me with his vehicle.

Why was that not followed up? Do you have any idea of why my statements of him assaulting me with his vehicle was not followed up?

A. Followed up in terms of what?

Q. If I said somebody stabbed me, sir, and I reported it, I called 911 and I told the officers when they get to the scene that I was stabbed, and I said he hit me with his vehicle, why was that not followed up.

I am not angry with you. I am trying to figure out how to ask this question. I made a statement in the 911 call and I made a statement to multiple officers at the scene that he had hit me with a vehicle.

That was not followed up by a single officer and was not added to the report.

Is there a reason that you believe that that did not make it into the report of me declaring that he hit me with a vehicle?

It is a standard question.

MS. NAVARATNASINGHAM: Objection, vague and ambiguous. I don't understand the question.

MR. ROSARIO: Q. Did you record that I said he hit me in the police report?

A. I don't remember exactly what is in the police report. Whatever is in there is what statements I had at the time.

Q. Okay. Sure. Yeah. I know that you weren't there during the interviews and so you worked with what was given to you, I know that, and it is not your fault.

MS. NAVARATNASINGHAM: Objection.

THE COURT: Sustained. All right.

Mr. Rosario, I just want to let the jury know this. Okay?

Written police reports are not evidence for a number of legal and evidentiary reasons; therefore, you won't be receiving the written reports or copies as evidence.

Certainly they can reference it. There is no issue with regard to referencing them in their examination of witness; however, as I said, you won't be getting a copy.

If it is something that is important for you to know, please record that in your notes, all right? Okay.

So you may continue, sir.

MR. ROSARIO: Q. So if a person says that they were assaulted and they have recorded on 911 and it was recorded in body cams, is that something that is important to determination of fault?

A. Sorry. Are you talking about a hypothetical or are you talking about this incident?

Q. I would say, typically, in your regular business operations of a day when you are out doing your duty, Officer Fernandez -- and thank you very much for what you are doing, my team really appreciates you, we really do -- is it something that if somebody states that they have been assaulted in a situation, would that typically make it into a report?

MS. NAVARATNASINGHAM: I object as to relevance and the term "assaulted."

THE COURT: Sustained. It is not relevant.

MR. ROSARIO: Q. Does it make sense, they have been hit, assaulted, stabbed, whatever it might be -- let's not split hairs or mince words with the Defense -- if somebody reports that there has been some kind of action done against them, is that generally made into the report?

MS. NAVARATNASINGHAM: Objection, same objection. I am not mincing words. I think stabbing and a traffic collision is very different. So the same objection.

THE COURT: Sustained.

MR. ROSARIO: I am trying to get a general procedural method from which officers would report any action taken against a person and avoiding the statement that he hit me with the vehicle because that is what is recorded.

I am going to show that evidence to the jury later on.

MR. ROSARIO: Q. What I am trying to ask is: What is the typical methodology of statements from a victim when they report in 911 and on body cams multiple times that they have been hurt?

Is that information ever allowed to be excluded from the -- and like I said, you weren't there --

THE COURT: Mr. Rosario, you have to give the officer an opportunity -- the witness to answer one of your questions.

MR. ROSARIO: Sorry --

THE COURT: Sir, listen carefully. You have to ask one question at a time of any witness including Officer Fernandez.

You've got to give him the opportunity to respond to your question in an orderly fashion.

MR. ROSARIO: Q. All right. Did you know that I had reported that I was hit and struck by the Defendant?

A. Yes.

Q. Did you know after the collision or before -- after your report or before your report?

A. Sorry?

Q. Did you have knowledge that I had reported that I was struck by the Defendant -- and I had declared that in both the 911 before or after you wrote your report.

Did you learn about it after your report when you wrote it or did you learn about my statement that I was hit by him before you wrote the report?

A. I was aware of a collision between his vehicle and you and your vehicle.

Q. Let me clarify: Did you know when you wrote the report that I had made a statement that he had made?

A. Are you talking about his vehicle hitting you in your vehicle?

Q. Did you know that I made a statement that he hit me before you ever wrote the report? I am not saying whether it is a fact or you saw it or anything.

I am saying: Were you made aware that I had been telling the 911 and the police officers at the scene that he hit me? Did you know about that because you wrote the report after the whole event had happened?

So did anyone inform you directly, saying: Mr. Rosario says that that guy hit him and it is recorded?

A. Can you specify, what do you mean by "hit"?

Q. I literally said: He hit me with his van. He hit me, that guy hit me. I said it multiple times in the video.

You weren't there. Did any of the other officers report to you -- like I said, it is not your fault. If no other officers --

MS. NAVARATNASINGHAM: Objection. Is there a question?

THE COURT: Sustained.

MR. ROSARIO: Q. Did any other officers tell you that I had said he hit me?

A. Yes. I was aware a collision occurred where his vehicle had struck you, yes.

Q. Did any officers tell you that I said he hit

me?

MS. NAVARATNASINGHAM: Objection, asked and answered.

THE COURT: Overruled.

MR. ROSARIO: Q. It is a yes-or-no question.

Did anyone tell you that that guy said he hit him?

A. I don't know that any officers said that verbatim. I don't know.

Q. I am not trying to say you did anything wrong.

What I am trying to say is: You did not get the information --

THE COURT: Next question, please.

MR. ROSARIO: Q. The next question is: Since you did not have that -- I guess what we are going to ask, then, is: If you had known, would you have added that? Yes or no?

A. If I had known what?

Q. That I was making clear statements that he had hit me with a vehicle. Would you have made sure it was in the report?

If I said -- let's kind of do this again.

If I said that somebody stabbed me, would you put that in? If I said somebody hit me with a vehicle, would you put that in?

It doesn't matter. Would you put a declaration of a person's accusation against another

person into a report, typically?

A. I am pretty sure the report states that his vehicle hit you unless --

Q. Are you sure about that, Mr. Fernandez? Are you sure that it says that it hit me?

A. From what I remember, I did this report because there was some kind of collision occurred.

So unless you have some other -- unless you have a report to show me that shows something different.

Q. Therein lies the rub. Mr. Wong says it is not admissible.

So what we have here is we can't debate what you wrote in the report because a lot of things happened because of that report to me, and because we can't bring it, I am not allowed to illustrate to the jury, who is the people who should see it.

All right. The next question I guess I am going to say is: If I told you it was not in there, would that be something that should probably be in need of correction because the evidence shows that, and if it had failed -- and I know it is not your fault, you weren't there at the scene -- would an officer normally go back and say wow, look at all this evidence here, I need to make sure those things are corrected on the record?

That is something that you would see? You would see that evidence?

MS. NAVARATNASINGHAM: Objection. Sorry. Relevance, lacks foundation, vague and ambiguous.

THE COURT: Let me ask you this, Mr. Rosario:

Do you have a hard copy of the police report?

MR. ROSARIO: Yeah. Absolutely. The police report.

THE COURT: Not his deposition. The police report.

MR. ROSARIO: Q. All right. We are going to go ahead and say this one thing.

It clearly stated in the police report -- and it was very clear -- that there was no contact with the vehicle. Very clear.

And like I said, you didn't have all the facts. Were you told by the people it slipped?

I am not trying to impeach you, sir, or blame you for anything.

I am trying to ask you: If a victim of any crime told you directly that somebody had done something to them, you as a officer of the Court, your duty to your everything, you would record that, correct? Yes or no?

A. Yes.

Q. Okay.

THE COURT: Mr. Rosario, he is not an officer of the Court.

MR. ROSARIO: Sorry. A police officer. I get these confused all the time. I took a big bump to

my head. All right.

MR. ROSARIO: Q. So you would normally -- and that would be definitely in there if somebody, if he said any kind of action was done to them by another person, but unfortunately, that is not in the document right now. It has been cited as inadmissible.

Unfortunately, where we are at, is if you are right now reporting that you do not recall -- okay, here we go. Now, then --

THE COURT: Well, no. This is what we are going to do.

You ask that police reports are not admissible.

However, it appears Officer Fernandez does not remember what was in the police report verbatim.

He has a general understanding.

I am willing to have his recollection refreshed if you have the police report, a hard copy of that police report, to present to him.

I don't think it is entirely fair to Officer Fernandez to ask him questions that -- to ask questions about specifics in a police report when he has not had the opportunity to review the report.

So if you could provide him with a copy, a hard copy of the police report that he may refer to, then I will permit further examination in this area; otherwise, his simple answer is: Yeah, I got a call that there was a collision that we didn't -- I don't

remember what else was said, but basically you were there and Mr. Abdelhalim was there.

And that is really the extent that I have so far about this. So, sir, you need to give him a copy of the police report so he can review it so you can have a more efficient examination of the witness.

MR. ROSARIO: We will come right back --

THE COURT: So have your assistants find that report pronto.

MR. ROSARIO: Yes. We will do that. We will come back to that in a second.

MR. SOBATI: Your Honor --

THE COURT: Sir, Mr. Sobati, you are not permitted to say anything during these proceedings, as you did.

MR. SOBATI: My apologies, Your Honor.

THE COURT: Not a word. You are his assistant. He is prosecuting this case. You are not allowed to. You are not a paralegal. You are simply an assistant here.

Thou shalt remain silent throughout these proceedings.

You may speak to him but not to the Court.

You may continue with questions, sir. No speeches.

MR. ROSARIO: Q. Yes, sir. All right. When we get back to that -- let's go ahead and cover a couple of things that are very important to this whole

thing.

Are drivers obligated to yield to pedestrians in crosswalks?

MS. NAVARATNASINGHAM: Objection, calls for a legal conclusion.

THE COURT: Sustained.

MR. ROSARIO: Q. Okay. Have you ever arrested anybody or picked anyone up for failing to yield to pedestrians in a crosswalk? Yes or no?

A. I have possibly cited someone for that.

Q. And how do you determine whether somebody fails to yield?

A. I mean, just based on what I observe, if a pedestrian is in a crosswalk and a car doesn't yield.

Q. How is it determined if there is no officer to observe it?

A. Sorry. Your question?

Q. How is an individual failing to yield determined if an officer is not there to observe it?

What are the pieces of evidence you use to determine that somebody failed to yield if there was no observant other than a victim and a driver?

A. Are you talking about like for a citation or for a police report?

Q. Yeah. You get called. There is a person laying on the ground. There is a driver. There is a stop sign. There is, you know, walk lines. How do you determine that the driver failed to yield?

What is the process that you use?
A. You get statements from the parties involved and from any witnesses or any video footage.
Q. Okay. And if there is none, do you use reconstruction logic? Or what do you use?
MS. NAVARATNASINGHAM: Objection, vague and ambiguous.
THE COURT: Sustained.
MR. ROSARIO: Q. How do you determine if there is no videos?
A. I just go off of the statements that I have.
Q. What if the pedestrian is dead or incapacitated?
MS. NAVARATNASINGHAM: Objection, irrelevant.
MR. ROSARIO: Q. How do you determine that?
THE COURT: Overruled. We can have that answer.
THE WITNESS: If there is video evidence or witnesses, yeah.
MR. ROSARIO: Q. Would you use, for example, the position of the bodies and the vehicles, also?
A. So I would not use that. We do have a traffic collision investigative unit that handles any kind of vehicular manslaughter or any serious injuries, so they would probably do that.
Q. Were they present at the incident between Mr. Abdelhalim and myself?
A. No.

Q. So you said they were not present. Did they come afterwards?
A. No.
Q. Did they analyze the evidence and come to a finding afterwards?
A. No.
Q. Did that special unit, did they offer to analyze it?
A. No.
Q. Did you forward it to the special unit that determines --
A. All of our traffic police reports, they get forwarded to our traffic division and they review the reports.
Q. Okay, thank you. All right.
Now, the concept of, for example, duty of care to prevent, you know, collisions with people, which is, essentially, that they must yield in crosswalks, are you familiar with that code?
MS. NAVARATNASINGHAM: Objection, calls for a legal conclusion.
THE COURT: Sustained.
MR. ROSARIO: Legal conclusion?
MR. ROSARIO: Q. All right. A legal conclusion.
What is the implications of that code, can you tell us?
MS. NAVARATNASINGHAM: The same objection.

THE COURT: Sustained.

MR. ROSARIO: Q. Same objection? All right.

How does an officer tell somebody that they have broken a rule?

Does that require a legal conclusion or does it require your interpretation?

A. Sorry. Repeat the question.

Q. How does an officer tell somebody that they violated the traffic code? I mean, is it a legal conclusion or is it through your regular daily operation of your business if you say that is a violation when it happens?

Which is it? Are you making legal analysis or are you making standard police officer observations saying that is a violation based upon what the rules are, what I know? Which is it?

A. I mean, I just interpret the different vehicle codes and if I observe something, then I can enforce it.

Q. Are you authorized to interpret vehicle codes and make legal conclusions on codes?

A. I don't know. I am not sure what you mean by "legal conclusions."

Q. Are you allowed to make a legal conclusion on, for example, vehicle codes such as collisions?

A. What do you mean by "legal conclusion"?

Q. Well, the defense says that you are making a legal conclusion. So the judge just sustained that.

I am asking: Do you know what a legal conclusion on a vehicle code is?

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. Okay. Well, what is a legal conclusion? I mean, this is a really interesting thing.

This is kind of like -- it is such a big concept that they are able to sustain it. Maybe -- I am not an attorney.

How do you determine that the vehicle code has been violated?

A. I interpret the different vehicle codes and then I observe.

Q. Oh, my God. It is almost like a loop.

I ask you: How do you determine? She says he -- Okay. We will move on to the next question.

Did you determine that there was any vehicle codes violated in the incident between Mr. Abdelhalim and myself?

A. Yes.

Q. All right. And you said -- you stated earlier that you were not at the scene.

A. At the time of the collision. I believe I arrived afterwards.

Q. And you stated that you collected the information from other officers, correct?

A. Correct.

Q. And those other officers, they are not here today, correct?
A. That is correct.
Q. Have you ever received a subpoena from the Defense?
A. Yes.
Q. And did they ask you to bring the other officers or just yourself?
A. Just myself.
Q. And you can speak legally about your own observations.
Are you allowed to speak about the observations of other officers?
A. I can talk about what was relayed to me from what I recall, but I don't really recall what was said exactly.
Q. You don't really recall?
A. Correct.
Q. Do you recall with perfect clarity enough to, you know, convict somebody, or it is not enough, would you say?
Would you say that your recollection is enough to convict a person or not?
MS. NAVARATNASINGHAM: Objection, vague and ambiguous, relevance.
THE COURT: Sustained. You are asking whether he recalls other remarks by police officers.
Sir, that, by definition, is hearsay.

MR. ROSARIO: Oh, is that right? You said that anything that he would recall from another officer is actually hearsay?

THE COURT: Yes. You are asking for specifics from the police officer. These are out-of-court statements being offered to prove the truth of the matter.

And, members of the jury, I know there are lawyers here, but hearsay is often a concern of the parties. And here is what hearsay is defined as:

You just heard me say it is a statement made out of court offered to prove the truth of the matter.

In plain English, what that means is the statement was made outside the courthouse, you were not -- you, the jury, were not able to see the circumstances under which those statements were made; therefore, it is excluded, okay?

You don't have the ability to determine how and under what conditions those statement were made.

So that is the concern about hearsay and what I think is plain English. Okay.

So you may continue, sir.

MR. ROSARIO: We are moving along. Good. Thank you.

Q. So you just said that all the other officers -- everything that you said about what the officers said is actually hearsay.

So because you never observed it by yourself

but, yet, you made the determination of fault based upon the available information some officer had, you said you don't remember who it was, there is no name associated --

MS. NAVARATNASINGHAM: Objection. Is there a question?

THE COURT: Sustained. Your question, please.

MR. ROSARIO: Q. Yeah, there is.

You never stated to anybody who made the statement about me, you made clearly that there was a statement about him.

Now you are telling me that is the hearsay from Mr. Abdelhalim through Mr. Orengo is what you reported on; is that correct?

A. I wrote in my police report what was relayed to me at the time and that is what is in there.

Q. Yes. So you would say, as the judge just stated, because it was told to you from another officer, that that counts as hearsay?

THE COURT: That is not what I am saying, sir.

He may rely on the other police officer's remarks to form an opinion or to make an assessment of the accident scene.

What is not admissible are the actual statements that were made to him.

You are asking him about how he formulated

his opinion regarding the accident scene at the time he was performing the investigation.

So your simple question is: Did you rely on other police officers to figure out what happened?

And his answer has simply been, in essence: Yes.

MR. ROSARIO: All right.

THE COURT: So the next question, please.

MR. ROSARIO: Q. The next question would be: None of the other officers reported any crimes that were committed; is that correct?

There was no report to you from other officers that a crime had been committed. I don't believe I have seen anything on the report.

A. The only offense would be a traffic infraction but no other -- all right.

Q. A traffic infraction. Which traffic infraction do you believe had been -- okay.

Was anybody actually ticketed or cited?

A. No.

Q. So you said there is a traffic infraction.

Is it typical not to cite somebody if a infraction had happened?

A. In a vehicle collision, if the party at fault causes injury to someone else, then they would be cited. That is just our rules from my department.

If the person at fault does not cause any injury other than to themselves or they are the only

party that is injured, then they don't receive a citation.

Q. So the party at fault. So we are talking about the party at fault. What does "party at fault" mean?

A. It is just the party that I placed at fault during the investigation.

Q. What does it constitute to be determined that the person is at fault? What is that calculation? What does that mean? What does "party at fault" mean?

A. It just means they caused the collision or contributed to the collision.

Q. Caused it or contributed?

A. Yes.

Q. So is it possible that a person could be ten percent at fault or do they have to be a hundred percent at fault?

A. I mean, there could be different variations.

Q. Okay. So you stated clearly earlier you got the information from somebody else.

You read the information. You found that the information provided to you in your regular duty of your job stated that Mr. Rosario, myself, was the party at fault.

You stated just a second ago that there was some kind of a traffic infraction but that nobody had been cited.

Can you tell us what that traffic infraction

was? Do you recall it?
A. I know it is in the police report. I don't remember the exact vehicle code. I just know it is the infraction for driving on the wrong side of the road or riding or -- any vehicle on the wrong side of the road.
Q. Does that include walking?
A. No. Any vehicle.
Q. Okay. So a person walking would not get that citation?
A. Correct.
Q. So a person in a vehicle, what constitutes a vehicle, sir?
A. It could be a bicycle, a scooter, a car.
Q. Is a skateboard a vehicle?
A. It could be, yes.
Q. Okay. And in order for this infraction to have happened, you said riding on the wrong side of the road.
How do you determine if somebody is riding on the wrong side of the road?
There has to be evidence, correct, sir?
A. Usually everyone drives on the right side of the yellow. So --
Q. You told me that potentially some kind of vehicle code had -- an infraction had transpired.
You said that somebody in this case -- you said riding on the wrong side of the road.

Where is the evidence, sir, that that actually happened?

A. It is based on statements that were given on the scene.

Q. Oh, so the statement by the Defendant, sir?

A. All statements from the parties on the scene.

Q. Okay. You stated clearly you don't know who gave you my statement, correct?

A. Correct.

Q. You do know that Orengo gave you Mr. Abdelhalim's statement, correct?

A. I believe so.

Q. Do you typically make assignments of, for example, citations based upon parties, a one, single party's statement?

A. Sorry. Repeat the question.

Q. In this case, would you find that you made the determination that I was or my or whatever was violating the code based upon Mr. Abdelhalim's statement?

A. Based on everyone's statement that was received.

Q. You said you did not, you said that somebody had verbally stated to you what that was.

I am still trying to figure out where you came to this determination that I -- or where the evidence was presented to you.

Like I said, if you believe that somebody

else gave that information to you, that is fine. That is not your fault.

MS. NAVARATNASINGHAM: Objection.

MR. ROSARIO: Q. But we are going to ask you a question.

MS. NAVARATNASINGHAM: Narrative.

MR. ROSARIO: Q. Did you observe me violating that law?

A. I did not observe that.

Q. Do you know what officers did?

A. I don't think any officer observed that because we arrived after the collision.

Q. Okay. So you have no statement from me clearly, correct?

A. I have a statement that you provided to somebody on scene, and it is in the police report, but I don't remember who.

Q. Correct, yeah. It was just -- I believe it was just kind of agreed upon by officers that the statement was -- I looked at the video, we will get to that later.

I want to determine how you determined that I was violating this.

Where is the evidence? You said other officers saw that.

So that implication of that, how would the other officers then be able to determine --

Can you please -- Your Honor --

THE COURT: Let's finish the questions here. Then we will take a break. Then we can handle the --

MR. ROSARIO: Q. You are doing great. Thank you very much. I appreciate it.

I am not trying to put you on the spot. It just has to happen for this to get resolved.

I am digging into this. So do you understand what I am trying to identify is where this evidence that is sufficient to say that I was breaking the law? And then the domino effect of that is that I am then at fault, all right?

So where did that happen in here? You weren't there. You heard hearsay from another officer or a report from another officer.

You took the best information you did based upon what you had and you did your duty as an officer to make sure that was reported, and there we are.

So -- but the issue is that we don't have an actual source of this statement. And because, like you said, it is years, we don't know where it came from --

MS. NAVARATNASINGHAM: This is narrative. Is there a question?

THE COURT: Sustained. Can we have the question, please?

MR. ROSARIO: Q. Could you stand right here, sir, in front of me and tell any of us right now who made that statement?

THE COURT: Which statement?

MR. ROSARIO: Q. The statement that you said was used in order to say that I was violating a traffic law.

Can you give us a name, please, sir?

A. Like I said earlier, I don't know who you spoke to on the scene so I can't say.

Q. You cannot say? Or do you have an idea who it was, sir?

MS. NAVARATNASINGHAM: Objection, asked and answered.

THE COURT: Overruled.

MR. ROSARIO: Q. Do you know who stated it? Any idea? It will be one of the police officers that were present, correct?

A. Correct.

Q. One of them gave that to you and somehow you gleaned that from a group, but not a single officer could say: I collected a statement from Mr. Rosario stating that he was violating the traffic law?

A. Somebody -- I don't know which officer I spoke to. Like I said earlier, I don't remember. I don't know who you spoke to.

Q. Would that be sufficient to use in a court?

MS. NAVARATNASINGHAM: Objection.

THE COURT: Sustained. That is not a proper question. He is not a lawyer. You are asking for --

MR. ROSARIO: We are in a court, Your Honor.

I am trying to figure who said I violated the law to give this guy the right to deny he ever touched me.

THE COURT: Sir, we are addressing the nature of his investigation. You may do so.

But to ask him about what the law requires and so forth, what his obligations under the law are and to interpret particular code sections and so forth, they are not relevant to your case here.

So let's --

MR. ROSARIO: It is absolutely relevant because what we have here --

THE COURT: Let's take our break. You can address the matter of relevance during our break.

Let's come back at 1:30.

Remember not to form or express any opinions about this case to anyone. Please put the notebooks -- you can leave them on your seats. They will be back there when you return.

Officer Fernandez, you have to come back at 1:30. Thank you, sir.

(Whereupon, the jury was excused for noon recess).

THE COURT: All right. We are back on the record. Thank you. The jurors have been excused for the midday break.

And there is an issue with regard to your examination of Officer Fernandez.

MR. ROSARIO: I will tighten it up and only

ask questions, Your Honor. I apologize. I understand what I was doing wrong. And I am going to correct that, Your Honor.

I will make my logical questions, so that way these narratives don't get stuck in the middle.

I am just speaking the thought process in my mind, if you would rather I just be quiet during the pause.

THE COURT: I am not asking you to be quiet. I am asking you to form proper questions here. And the Court will continue to sustain the objections.

At some point, if your questions are repetitive, then I will strike the questions and the answers because you have been essentially working through the same couple issues with Officer Fernandez and his traffic investigation for better than an hour, an hour and 15 minutes.

MR. ROSARIO: Yeah.

THE COURT: And you need to be conscious of your time. You need to be watching the clock.

You have only so much time to submit your case so --

MR. ROSARIO: We are discussing right now the origin of a statement that put me at blame, which the Defense has postulated its entire defense, Your Honor. So we are getting down to who made that statement about me and I have a right to get down to it. So as long as it takes, I have the right to find out.

THE COURT: You certainly do have a right to present evidence, to cross-examine witnesses, but you do not have a right to argue with the witnesses.

MR. ROSARIO: Okay.

THE COURT: You do not have a right to inject your contentions into your narrative statements and then the witness is left with: I am not sure what question you are asking.

That is the problem. The jury is sitting there, they want you to ask questions on direct so that we have a direct question and a appropriate response from the officer.

So far, the officer has been essentially without the ability to recall everything because, naturally, it has been almost four years ago or more than four years ago that this accident took place.

MR. ROSARIO: He also wasn't at the scene either.

THE COURT: I understand it. You have established that. So know when to call it.

MR. ROSARIO: All right.

THE COURT: You don't have to announce it to the jury. That is part of your argument to the jury later on in the case.

You can say --

MR. ROSARIO: Oh, I see.

THE COURT: Okay. My questions established he wasn't at the scene. He also said the other police

officers were not at the scene.

Then they have to give weight, whatever weight they want to, in terms of evaluating how good his investigation was.

You did ask questions about his investigation.

If you want to argue that portions of the investigation were faulty, you can do that in your argument, but not during the trial, sir.

MR. ROSARIO: I was establishing how much information --

THE COURT: Listen carefully. I don't need to hear your excuses. I want you to proceed in an efficient way.

This is no different than what you do at your work. Be efficient. Don't get caught up on the side or sidetracked with other matters of your concern.

The big picture is you want a single witness to answer certain discrete -- to give discrete answers about a particular issue. That's the goal here.

Beyond that, if you fail to observe that, then at some point the Court will consider other objections that Defendants may raise with respect to the manner and mode of your interrogation of the witnesses.

MR. ROSARIO: Okay.

THE COURT: I have not injected myself in here; only when I am asked to do so by way of a motion

or an objection.

MR. ROSARIO: All right. After lunch, I will have my sequence of questions appropriately structured -- so that way we can move through them quickly -- as best I can.

THE COURT: All right, very well.

(Whereupon, the noon recess was taken).

AFTERNOON SESSION

THE CLERK: Please remain seated and come to order. Thank you. Department 504 is in session.

THE COURT: We are back on the record, and the record should reflect that all jurors are present, all parties are present.

And can we have Officer Fernandez resume the witness stand, please.

Sir, you are still under oath.

Once he is settled, Mr. Rosario, you may resume your examination.

DIRECT EXAMINATION RESUMED BY

MR. ROSARIO: Q. Welcome back.

A. Thank you.

MR. ROSARIO: I guess now, for the Court, we are providing the Court the police report that was requested.

THE COURT: Okay. The record should reflect that -- the traffic collision report, do we have it marked?

THE CLERK: We don't.

THE COURT: I don't think we should mark it yet. It is for purposes of refreshing his recollection.

We will identify the item as a traffic collision report and the Court number is 210079556 and it appears to be initially a seven-page report. And

then there is a supplemental which -- there is a supplemental nine pages.

So, in total, it is a 16-page document.

Now, if you are going to ask him a question, sir, what you need to do is to ask him a question and then direct him to -- if he does not know the answer, direct him to the particular portion of the report that you want him to review.

He reads it, he turns it back down, and then you ask him the question, and then he answers. Okay?

That is how it works.

MR. ROSARIO: Okay. All right.

THE COURT: Members of the jury, frequently witnesses will forget things and you could use anything to refresh someone's recollection; in other words, to jog someone's memory.

That item, it could be what I learned back in the day -- and maybe some of the lawyers remember this. There was a professor who used to say: A bowl of meatballs could refresh your recollection.

It doesn't go into evidence, but that could be used to jog someone's memory.

It is generally not admitted into evidence unless there are certain other things triggered; but for now, we are going to allow Officer Fernandez to refer to this report in order to speed things along. All right.

Again, the report will not be admitted for

various legal and evidentiary reasons.

You may proceed, sir.

MR. ROSARIO: Okay. All right. I got my notes back together much better now. All right.

DIRECT EXAMINATION RESUMED BY

MR. ROSARIO: Q. Mr. Fernandez, on Page 5 of the narrative supplemental report, on line -- I believe line number 4 through lines -- number 6 --

THE COURT: Sir, you just need to ask him the question. Then if he doesn't know the answer, then you can refer him to the specific language in the -- or the specific part of the report that you are contemplating.

He can look at it and say, yeah, now I remember it, or I don't remember it. That is the way it works.

You don't need to direct him specifically to it. You just need to ask him the question first.

MR. ROSARIO: Q. All right. There was a dispatch to -- called a vehicle collision with injury.

Are you familiar with the exact dispatch and what was called in?

A. Sorry. Can you repeat the question?

Q. The record on the document shows that it was a dispatch with an injury.

But were you aware of the details of that?

Was there any more specifics to the injury or

the incident more than what was listed right here in your report?

A. I remember responding to a vehicle collision with injury but I don't remember exactly what was said during the call.

Q. And to clarify, you weren't the first officer at the scene.

Do you know which officer was at the scene first?

A. Correct. I was not the first officer. I don't remember who was the first officer on the scene.

Q. Okay. And when you arrived at the scene, you mentioned here that there were signs that were available.

There was photos in your record of a yield to pedestrian and bicycle sign.

Do you recall that sign?

A. No.

Q. I think at this point I would like to share the sign that was taken from your body cams, the body cams from your team, and I -- share that image that came from the police report in the police images.

THE COURT: Mr. Bailiff, please assist Mr. Rosario.

MS. NAVARATNASINGHAM: Your Honor, we just object to the extent it lacks foundation, authentication, and we have not received a copy of what he is trying to offer.

THE COURT: Well, it is not being offered into evidence yet. So it is only being offered ostensibly to refresh the officer's recollection.

I am going to give him some bandwidth given these procedures may not all be familiar to him.

MR. ROSARIO: I have a set of images here that will show the sign that was recorded from the body cam. All right.

MR. ROSARIO: Q. This is Exhibit No. 11 and on -- there should be a Bates stamp on the top of the Pages 001, 002. And if you go to 003, you will see a sign there that clearly states that those turning vehicles must yield to bicyclists or pedestrians.

There is not the words, but there is a picture of a bicycle and a pedestrian walking.

Now, can you tell us what direction -- on Page 002, you will see the same image but a little bit farther back, which also shows that turning vehicles must yield to bicyclists and pedestrians.

Do you see those?

A. Yes.

MS. NAVARATNASINGHAM: Your Honor, Mr. Rosario, does he have a copy for us? I don't know what we are viewing.

MR. SOBATI: I thought I had submitted it already. My apologies.

THE COURT: Do we have a set for the Court as well?

MR. SOBATI: Yes, of course, Your Honor.
THE COURT: Okay. Thank you.
Mr. Rosario, I am going to ask you to frame your questions so that the witness can describe whatever you are asking him to talk about.
You are not to testify during your examination. You are describing everything in the photograph, and the way it works is that is not evidence.
The evidence is what he says, so keep that in mind when you are asking questions.
MR. ROSARIO: Q. Okay. Can you verify that that is the corner from where the incident happened?
MS. NAVARATNASINGHAM: What page are we looking at?
MR. ROSARIO: We are looking at 002 on the second image, right there is the incident. It is on the corner of 5th and Tehama.
THE WITNESS: Yeah, it looks like a image from Google maps. It appears to be the same intersection.
MR. ROSARIO: Q. On Page 004 -- it is I believe a body cam photo from Officer Thompson that shows that exact same intersection.
Do those intersections match?
A. Yeah. It appears to be the same intersection.
Q. On those photos, there is a bike lane,

correct?
A. Yes.
Q. Do you recall if that bike lane was printed green or gray or anything like that?
A. I don't recall.
Q. And is there a stop light at that intersection?
A. No.
Q. The curb and the sidewalk and the bicycle lane are right next to each other, you know, the curb and the bicycle lane.
Is there any signs that tell the bicyclist to yield or stop there? Do you see anything?
A. What page are we talking about?
Q. On any of the photos there, do you see a yield or a bicycle stop sign on the photos?
It says: Bicyclist must stop at this intersection.
MS. NAVARATNASINGHAM: I am going to just state for the record to the extent that it is showing these photographs that have been produced off of what appears to be Google maps and that have been presented.
THE COURT: Well, I am not sure what your objection is.
Is it that they are not authentic?
MS. NAVARATNASINGHAM: Yeah, exactly, it lacks authentication.

It looks like they are Google maps and there are various pictures and so I am just objecting to lack of authentication and lack of foundation.

MR. ROSARIO: Okay. The foundation is that --

THE COURT: Well, first of all, what are you trying to accomplish here?

Are you trying to establish information about the intersection and do we need the photographs to do so? Or are you trying to have these photographs admitted into evidence?

MR. ROSARIO: We are not trying to establish the photographs into evidence right now.

We are trying to verify what you recall.

THE COURT: So ask him to describe the intersection rather than trying to prove it through materials that are not evidence yet.

MR. ROSARIO: Q. Okay. So now that you have seen that, that there is a sign there, are vehicles supposed to yield to pedestrians in that crosswalk? Based upon the signs and the markings and the layout of the road and the crosswalks, is that a place where vehicles or pedestrians are supposed to yield?

MS. NAVARATNASINGHAM: Compound.

THE COURT: Sustained.

MR. ROSARIO: What did she say?

THE COURT: One question, ask a single question.

MR. ROSARIO: Q. Based upon what you see, are vehicles supposed to yield for pedestrians in this intersection?

A. Yes.

Q. Based upon what you see and what you know of those types of markings, are pedestrians obligated to yield to vehicles who are turning into that street?

Are pedestrians obligated to yield to vehicles as they are turning onto that street or is it the other way around, the vehicles are to yield for pedestrians?

MS. NAVARATNASINGHAM: Compound.

THE COURT: Overruled.

MR. ROSARIO: Q. One or the other.

A. So usually I know the pedestrians have the right of way unless the vehicle is already in the intersection, is already turning, so it depends. But usually, the pedestrians have the right of way.

Q. Thank you. Okay. Clearly not, but okay.

As you stated earlier, there is no stop light; there is no apparent signs for the pedestrians to stop or bicyclists to stop.

You stated earlier there were no people -- is that correct? As far as you know, there were no witnesses?

A. Correct. We didn't receive any witness statement.

Q. You did not receive witness statements?

A. Correct.
Q. You can't speak for the other officers, but you personally did not receive any?
A. Correct.
Q. And as you stated earlier, that -- there were no cameras that could have provided any information as to the situation, correct?
A. Correct.
Q. On that day, was there a lot of traffic, do you recall?
A. I don't recall.
Q. On February 4th, 2021, I believe the pandemic was in full force; the city was fairly locked down.
Were -- those weeks and those months during the pandemic, was there a lot of very heavy traffic in downtown San Francisco, or was it fairly light?
A. I can't recall.
Q. Okay. That would be clarified by the body cams, of course.
I see that in your report, that you reported that the person -- that party one was complaining of pain in the left side of his rib cage, on the left side of his lower back, correct? That is in the report?
A. Yes. I documented a complaint of pain to the back and left side.
Q. Left side, okay. Where was that reported to you, since you weren't there? Do you remember who had

told you it was the left side?

Was it a fireman or was it another officer?

A. I don't remember.

Q. And from the statement, did Mr. Abdelhalim turn right or left into Tehama?

A. He turned right.

Q. Okay. On that -- if he turned right, if you were to put it together, did that mean that I was struck from his right side or from his left side of his vehicle?

MS. NAVARATNASINGHAM: Calls for speculation.

THE COURT: Sustained.

MR. ROSARIO: Q. Did you listen to the 911 recording after the collision or after the incident?

A. No.

Q. So you are unaware of the foundation for which the police were ordered there other than the fact there was some kind of incident between -- there was some kind of a collision incident, just a generic, correct?

A. Dispatch received the call and then they broadcast it for us. We usually don't listen to the 911 call.

Q. I will double check here. This is not entering into testimony.

But what I will do is I will ask you if this particular call number or a particular call message --

It says here: RP in a van hit male

pedestrian on a scooter.

That would probably pretty much align with why you guys got a call, that is what the 911 dispatch says.

Does that align correctly with the type of response that you would normally have if that was to be stated in a call for a dispatch for an officer?

You guys would arrive and expect to see some kind of collision between two people?

A. I am sorry. Can you clarify your question?

Q. Yeah. The dispatch says that somebody was struck, a pedestrian was struck, and you got there, and the statement says here in your statement that you were dispatched to a call of a vehicle collision with injury; and the part about the pedestrian being struck was left out in your report; whereas, the 911 dispatch states a pedestrian was struck.

So we lost somehow or another the message sent from the 911 to dispatcher, not to you, like you said, but somehow from the 911 dispatch to the report, the whole concept of a pedestrian has been dropped.

Can you explain that to us?

MS. NAVARATNASINGHAM: Objection, it lacks foundation.

And also, do you have a copy we can look at.

THE COURT: Sustained.

Officer, typically what happens when a 911 call is processed and received.

What happens next?

THE WITNESS: So dispatch receives the call and then they put it out on the radio and they either assign a unit or a unit comes up for the call. And then we also receive a computer that gets the message showing where to respond -- sometimes it has details of the incident -- and it has the name of the person who called the 911.

MR. ROSARIO: Thank you.

THE COURT: So as you said, it would be unusual to hear the 911 call; am I correct?

THE WITNESS: Correct.

THE COURT: That is what the dispatcher hears?

THE WITNESS: Correct.

THE COURT: Thank you.

MR. ROSARIO: Q. And when you arrived, like I said -- and I will speak a little in the third person because -- I was the victim here myself, from what you saw?

A. Yes.

Q. And as your report stated, you said it was on my left side, correct?

A. Yes.

Q. Were you aware that it was actually my right side that had been struck?

A. I was not aware.

Q. Okay. All right. Thank you.

Where was Mr. Abdelhalim's van located when you arrived at the scene?

A. I don't recall.

Q. On the images, sir, taken by an Officer Thompson's body cam, on the third -- Page 004 --

THE COURT: If he doesn't recall, if you want to use this to refresh his recollection, you may; but you cannot assert that that is an actual fact in evidence here, sir. It is not evidence yet.

MR. ROSARIO: Okay. All right. Okay.

MR. ROSARIO: Q. Did you collect any -- you did not collect the -- for example, the standard information from Mr. Abdelhalim; it was another officer, correct?

A. Correct.

Q. What are the things that are typically collected from a officer, from a party that is not involved in the collision?

Is there ever any information that is collected from a person who just, for example, finds a person laying on the ground?

Is there a reason to collect?

The question is: Is there a reason to collect from a person who just finds a person on the ground?

A. Are you talking about a witness or a victim?

Q. A witness, yeah, a witness walking by and

finds a person on the ground.

Is it required that you collect that information?

A. We do gather information. Sometimes people want to be anonymous and refuse and we can't force them to provide that information.

Q. Would, there be a reason, if the person saw somebody on the ground, that you would collect, for example, their insurance information?

MS. NAVARATNASINGHAM: Objection.

THE COURT: Sustained. It is not relevant.

MR. ROSARIO: Q. Why was any information of the driver up to and including various documents necessary for them to operate a legal vehicle to be collected if a person were a witness? Is there a reason why all the various documents were collected from Mr. Abdelhalim?

MS. NAVARATNASINGHAM: I just object; vague and ambiguous.

THE COURT: Sustained.

MR. ROSARIO: Q. Okay. Are you aware if the documents were collected from Mr. Abdelhalim?

A. No.

Q. It states here that there is information in the report about Mr. Abdelhalim's vehicle and his home address as well as a VIN number.

MS. NAVARATNASINGHAM: Objection as to which report we are referring to.

MR. ROSARIO: The police report.
THE COURT: Overruled.
MR. ROSARIO: Q. And was that information that is Page number 1 of the TCR document -- do you have that in front of you?
A. Yes.
Q. And the information was collected by another officer, correct?
A. Correct.
Q. All right. And did you collect information regarding the scooter?
A. I don't recall who gathered that information.
Q. I believe it was you that locked it, the scooter. Correct? You locked the scooter from your body cam?
Do you remember doing that?
A. I don't remember.
Q. I believe it was you.
Do you remember checking the -- did you operate the scooter?
A. No.
Q. You didn't check that the scooter was operational?
A. Not that I recall.
Q. Did you check that the scooter had an electrical charge?
A. No.
Q. Did you check that the scooter had any --

like, was locked in or anything like that?
A. No.
Q. How were you able to tell that the scooter belonged to, say, me?
A. Based on whatever statement you provided.
Q. Earlier, you stated that you don't know who collected that information, correct?
A. Correct.
Q. So you associated the scooter to me based upon a statement from some other officer?
A. Yes.
Q. Okay. And that information led you to believe that that scooter belonged to me and I was operating it, from what the other officers stated?
A. Yes.
Q. But you personally had no actual evidence about that.
Is it possible that that scooter could have been laying there on that sidewalk?
A. Yes.
Q. All right. Do you have any evidence that I was mounted on the scooter personally?
A. Just the statement that was provided.
Q. I am asking for your personal information.
Did you have any evidence provided to you other than the statement?
A. No.
Q. All right. You had no images of me?

A. Correct.
Q. Do you know whether I was walking the scooter or not?
A. I don't know.
Q. So you don't know whether I was walking with it next to me or anything.
You just know there was a statement that I was mounted on it?
A. Yes.
Q. Okay. Are scooters -- are all scooters classified as vehicles? Is that right?
A. For the most part, all scooters operate on the roadway just like any other vehicle.
Q. If they are operated on the sidewalks, are -- they are operated on the sidewalks, are they considered vehicles?
A. Technically, it is illegal to operate them on the sidewalk.
Q. I wouldn't want my granddaughter riding on the sidewalk with a scooter with me.
Okay. So you are saying that scooters on the sidewalks of San Francisco are considered a vehicle?
A. I am saying that they are considered vehicles when they are on the roadway.
Q. On the sidewalk -- in a crosswalk, for example, is that considered a vehicle if it is found?
A. If it is found --
Q. Yeah. For example, the scooter is laying on

the ground in a crosswalk. Is it still considered a vehicle or is it considered an object in a roadway?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous.

THE COURT: Overruled, I think he can answer.

THE WITNESS: Usually someone has to operate the vehicle. So -- I mean, so if it is just found on the road, I don't know if I can consider that a vehicle at the time. Right.

MR. ROSARIO: Q. Thank you for clarifying that.

So if you don't have evidence of a person actually operating it and the person, say, for example, is walking it, would they be susceptible to the vehicle codes if they are just walking with the scooter?

A. No.

Q. So if I had a bicycle next to me, I am walking with my bicycle, then am I a pedestrian?

A. Yes.

Q. Does that also count for scooters?

A. Yes.

Q. And so it is a very fine line between whether I was on the vehicle or if it is a pedestrian because they have to be operating, correct?

A. Sorry. Say that again.

Q. You stated that a person, if they are operating -- riding on the scooter, they're -- they

are a vehicle and it would be a violation of the ordinance against riding on the sidewalks with vehicles, a scooter or not --

A. Correct.

Q. -- a skateboard, also different things.

But if they are walking with it, they are now a pedestrian?

A. Correct.

Q. Okay. So what you are saying now is that, again, you collected information from an officer that stated that I was operating it in a sidewalk, correct?

A. I believe the statement in the report states you were operating the scooter in the bike lane.

Q. All right. But we have evidence that you stated that you don't know where that statement came from, which officer it came from?

A. Correct.

Q. Okay. Did that statement come from the Defendant?

A. I am not sure. I don't think so.

Q. You didn't listen to the 911 statement, and the Defendant did say that in the audio there.

If that were so and if that were in the audio, would you then go ahead and repeat that into your report, what was stated in an audio call, a 911 call?

If a person said: Hey, there was a person that hit them, they were riding a scooter, and the

only witness was say, for example, the Defendant, would you write down that they were operating a scooter because the Defendant was the only person that hit them would be the only person who was recording it?

That is what you would provide?

A. I am sorry.

Q. Say somebody was knocked out, dead or unconscious and somebody calls and says:

Hey, I hit somebody and they were riding a scooter.

You would write down in that document, based upon what the Defendant said, because you could not get the statement from the person who is dead, correct?

A. In this hypothetical situation, possibly.

Q. Okay. So would it not -- so somebody could hit somebody; if there was no witnesses and no cameras, they could state that somebody was riding a scooter.

Would you take their word for it or would you try to do more investigation?

A. I don't understand the question. Sorry.

Q. All right. If somebody called you and they said: Hey, there is a person here unconscious or dead, they were riding a scooter and I hit them, would you write down that the person was riding the scooter as a vehicle or would you state that they were a

pedestrian until the riding of the scooter had been proven?

A. Whatever statements I receive, I am seeing, that is usually what I put down in the police report.

Q. So here is a very straight question:

If my daughter were hit --

MS. NAVARATNASINGHAM: Objection.

THE COURT: The objection is sustained.

MR. ROSARIO: Q. Okay. If a person is laying next to a scooter, the driver says that they were riding it, the person is unconscious, what would go into the report?

A. Whatever statement I have on the scene.

Q. Good. Okay. Excellent. You did not collect my statement and no officers -- well, no officers that you know collected my statement.

Do you have any evidence stating that I was riding the scooter in the street?

A. At multiple points (inaudible) --

Q. Do you have any statements from me, recorded otherwise, that clearly state without -- you know, irrefutably, that I claimed that I was riding the scooter in the street to qualify as a vehicle?

A. I do not have a recorded statement.

Q. You stated earlier that you got that statement from another officer hearsay, correct?

MS. NAVARATNASINGHAM: Objection, asked and answered.

THE COURT: Sustained.

MR. ROSARIO: Q. You stated that you got the definition that I was riding the scooter from another officer?

MS. NAVARATNASINGHAM: The same objection.

THE COURT: Sustained.

MR. ROSARIO: Q. I already asked this question. So are you certified to recognize injuries on human beings for medical reasons?

MS. NAVARATNASINGHAM: Objection, calls for expert opinion.

MR. ROSARIO: No.

Q. I am asking --

THE COURT: Overruled.

MR. ROSARIO: Q. -- are you certified as an EMT or a doctor to determine if a person is injured?

A. I am not certified as an EMT or a doctor.

Q. Did the San Francisco Fire Department EMTs provide info on my injuries to you at the scene, or after?

A. I don't recall.

Q. In your report, you stated that -- it states that I was injured. It states here that you said I was -- I was complaining of pain to the left side of my rib cage and to my lower back.

Unfortunately, it was the wrong side, but, okay. All right. Excellent. So -- all right.

We have established the EMTs did not give it

to you. It was delivered to you by -- through your own observation of seeing me hurt. We got that. Okay.

On 5th Street, now, at that intersection -- let's go deeper into that intersection right now and identify it.

Now, it states clearly in the report that Mr. Abdelhalim took a right-hand turn.

That means he would have been heading what direction on 5th?

A. Southbound.

Q. So if I was in the intersection and he was turning right, does that mean I would have been in front of him in his rear view?

MS. NAVARATNASINGHAM: It calls for speculation.

THE COURT: Sustained.

MR. ROSARIO: Q. If he is turning left -- if you are approaching the intersection and you turn right, that means you turn right, that means people coming towards you would be in your rear view, correct?

MS. NAVARATNASINGHAM: It calls for speculation.

THE COURT: Sustained.

MR. ROSARIO: Q. Was Mr. Abdelhalim obligated to look for pedestrians or bicyclists approaching him when he approached that corner?

A. Yes.
Q. Was Mr. Abdelhalim required to pause to make sure that vehicles might not be coming along his right-hand side as well, going the opposite direction?
A. Are you referring to the bike lane?
Q. Yeah, bike lane or crosswalk.
A. Yes.
Q. If a person is riding their scooter or bicycle in the crosswalk, does that mean that Mr. Abdelhalim does not need to pay attention to them?
MS. NAVARATNASINGHAM: Objection.
THE COURT: It is argumentative.
MS. NAVARATNASINGHAM: Argumentative.
THE COURT: Sustained.
MR. ROSARIO: Q. Is Mr. Abdelhalim supposed to pay attention to people in the bike lane and in the crosswalk?
A. Yes.
Q. If he was turning right, that means that anybody in front of him would be protected in that crosswalk; is that correct, would be traversing that crosswalk if they were walking as a pedestrian, and he was obligated to yield.
MS. NAVARATNASINGHAM: Compound, vague and ambiguous; it calls for speculation.
THE COURT: Sustained.
MR. ROSARIO: Q. Mr. Abdelhalim is obligated to pause for people in that crosswalk. Yes or no?

A. He is required to yield.
Q. Yield, okay. Is there ever a time that he is allowed to drive through there with a pedestrian within that space? Is he allowed to do that legally?
MS. NAVARATNASINGHAM: Objection, argumentative.
THE COURT: Sustained.
MR. ROSARIO: Q. So here we go. And this is, again, I guess a basic rule of the road.
What is Mr. Abdelhalim supposed to do when a pedestrian is in the crosswalk?
A. Yield.
Q. And what does that mean? Is he supposed to yield until the pedestrian has fully traversed the crosswalk or can he take off once they are about five feet -- I mean, what is the law on when he is allowed to make that turn?
MS. NAVARATNASINGHAM: Objection, argumentative, compound.
THE COURT: Sustained.
MR. ROSARIO: Q. Is Mr. Abdelhalim allowed to see if the person leaves the crosswalk?
MS. NAVARATNASINGHAM: I didn't hear the question.
MR. ROSARIO: Q. Is Mr. Abdelhalim allowed to turn before the pedestrian is out of the crosswalk?
MS. NAVARATNASINGHAM: The same objection.
MR. ROSARIO: Q. It is a straight rule of

the road; I think what we all need to know: Are drivers allowed to turn while people are in the crosswalk?

MS. NAVARATNASINGHAM: He asked and answered that.

THE COURT: Well, I will allow this one last question. I think we have the answer, Mr. Rosario.

THE WITNESS: He is allowed to turn when it is safe to do so.

MR. ROSARIO: Q. Are there bike lanes that go both directions?

A. Yes.

Q. There are, okay. There are bike lanes that go both directions?

How are bicyclists and --

Okay. You said -- you stated earlier that somebody is going against the flow of traffic.

So how can somebody be going against the flow of traffic if the bike lane is in two directions?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous as to whether the description of the intersection had a bike lane that was going both directions.

MR. ROSARIO: Q. If the bike lanes can go both directions, then it is possible for a person to go the wrong direction against the flow; is that correct?

THE COURT: Mr. Rosario, let's confine your

questions to this street, the -- Tehama Street, the intersection.

You need to know whether or not he knows if the bike lane was two directions or one directional.

We don't even know that yet.

So establish that first, and then you might be able to ask your next question.

MR. ROSARIO: Q. Oh, okay.

You said you don't remember whether the ground was painted or not -- correct, earlier?

A. Correct.

Q. So you don't know whether it was a two-directional or a one-direction bike lane, correct?

A. From other instances in that area, I believe it is a one-directional bike lane.

Q. How is a pedestrian or anybody going to determine whether a bike lane is one direction or not?

A. So pedestrians don't walk in the bike lane. Pedestrians can go either direction in a crosswalk.

If you are asking me about the bike lane, it was one-directional, so they should be on the right side of the double yellow, unless there is a bike lane with two directions; it will show an arrow going both ways.

Q. Okay. On Page 001, (sic) your image, is that a two-directional bike lane?

MS. NAVARATNASINGHAM: Your Honor, I object. The picture on 0001 is not the intersection in

question here.

I am not sure what road that is.

MR. ROSARIO: The lanes leading up to an intersection would determine the direction a person can go.

THE COURT: Sir, this is improper. Okay?

You have to establish -- if you are going to examine him on the issues of whether or not this street had a one or two-directional bike lane, you have to ask him first, and he has already stated that it was one direction.

If you present this document to him, you have to ask him if he recognizes it and you have to identify where this particular photograph comes from.

You haven't done so yet.

So one step at a time, sir. But so far, all we have is the bike going south -- I think that is what he testified to -- and it is a single direction.

MR. ROSARIO: Q. Page 002, you stated clearly the arrows go a different direction than traffic is going to go.

Image number 2 there is arrows pointing at each other. What is going on there?

MS. NAVARATNASINGHAM: Your Honor, again, objection --

MR. ROSARIO: Q. On 002, there is an arrow. You stated that is a one-way.

You stated clearly how a pedestrian is to

1 know which direction, if I claim -- you stated clearly
2 that arrows determine that for the pedestrian.
3 THE COURT: Yes.
4 MS. NAVARATNASINGHAM: Thank you, Your Honor.
5 The picture referred to on 0002 is, once again, not
6 the intersection in question in this lawsuit.
7 I don't know where that is.
8 THE COURT: Do you know where this photograph
9 was taken, sir, or who took it?
10 MR. ROSARIO: Yeah. That is Tehama. It is
11 taken on Tehama.
12 THE COURT: Sir, you cannot testify. Who
13 took the photograph?
14 MR. ROSARIO: Officer Thompson took it.
15 THE COURT: Then you need to establish that
16 through Officer Thompson.
17 You cannot impeach a witness based on -- or
18 to try and contradict --
19 MR. ROSARIO: I am not trying to -- I am
20 trying to establish how clearly a pedestrian is
21 supposed to know whether they are allowed to be hit by
22 vehicles in an intersection based upon the flow of
23 traffic.
24 THE COURT: Then ask the question.
25 MR. ROSARIO: I am asking the question to
26 clarify how the arrows, which he clearly stated went
27 one direction or the other -- and I asked about an
28 image and she keeps on objecting.

MR. ROSARIO: Q. I am asking: There are arrows in multiple bike lanes Mr. Fernandez --

THE COURT: There are a number of assumptions you have made based upon this photograph.

First, I need to explain to you, the jury has no understanding what you are addressing because the photographs are not in evidence yet.

So you need to paint a picture for the jury as to what you are doing.

The second photograph, top photo, on Page 0002 has a photograph of some sort of lane with one arrow pointing one direction and three arrows pointing the other direction.

What does that mean?

Can you tell us, Officer Fernandez?

THE WITNESS: So the one arrow pointing in whatever direction that is, that is usually the way the bikes will travel.

The other three, they are not arrows. They are some other kind of markings but they don't dictate the direction of travel.

THE COURT: Thank you. Next question.

MR. ROSARIO: Q. Yes. So that is fairly confusing.

Are you -- have you ticketed people for riding in the direction that the arrows are going?

A. Are you talking about, in my entire career, have I ever ticketed somebody for --

Q. For the bike lane violation of going in the wrong direction. Have you ever given a ticket out ever?
A. I don't believe so.
Q. Yet you cited -- but, yet, I was cited for flowing in the wrong direction, correct?
A. You were not cited.
Q. You had mentioned I was violating going in the wrong direction?
A. Correct.
Q. But you've never ever actually given out a ticket.
A. Correct.
Q. Have you ever found anyone else personally, other than me, to have gone in a wrong direction in a bike lane?
A. Have I found other people, yeah, I have.
Q. But you have never given them citations?
A. I don't believe so.
Q. So it is not really something that San Francisco -- since you've never done it -- I can't speak for the other officers.
But you've never given out a citation for somebody going the wrong direction?
A. On a bicycle, I don't believe so.
Q. Okay. Are drivers required to look both left and right before they turn?
A. They are supposed to clear the intersection,

make sure it is safe.

Q. When a driver fails to look in a mirror before they turn and if somebody is coming alongside them and they turn and they hit them, would that be the driver's fault, if the driver fails to look in the mirror? Is that generally why they are asked to look in the mirror?

MS. NAVARATNASINGHAM: Objection, incomplete hypothetical, it calls for speculation, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. Why is -- in the "do you care" which is the yield to pedestrians in the crosswalks under Vehicle Code 21950, and these other ones, why is it important? Why do we enforce this?

Actually, a good question.

Have you ever cited anybody for failing to yield to the vehicle code at intersections for a vehicle?

A. Say it again.

Q. Have you ever cited anybody for failing to abide by the vehicle code of yielding to pedestrians in crosswalks?

A. I believe so.

Q. So you have cited vehicles. You've never cited pedestrians for failing -- or bicyclists or scooters or anyone like that -- for violation of the directional, but you have cited people for not yielding to pedestrians, correct?

MS. NAVARATNASINGHAM: Objection, compound.
MR. ROSARIO: I was just verifying that. That is correct. Okay. Next question.
What is the right or wrong side of the road?
I think you said against the flow of traffic.
Are crosswalks bi-directional? Are they allowed to have people go both directions?
A. Crosswalks, yes.
Q. And only some bike lanes. Some bike lanes are two-directional, correct?
A. Correct.
Q. Some bike lanes are one direction, correct?
A. Correct.
Q. But crosswalks are always two directions, correct?
A. I believe so, yes.
Q. So if a person is doing circles in a crosswalk, that is perfectly fine because they are going both directions, crosswalks allow for two different directions?
A. Yes.
Q. If a person -- say they drop their wallet and they turn around on their bicycle in the bike lane to pick up their wallet. Have they violated the code?
A. Repeat the question.
Q. If a person drops their wallet and they turn their bike around to pick up the wallet, are they violating the codes?

MS. NAVARATNASINGHAM: Objection, relevance.
THE COURT: Sustained. Mr. Rosario, I will give you 10 minutes more to finish your examination.
MR. ROSARIO: Hold on. We are getting to the point now.
THE COURT: Get to the point, sir. I am going to give a 10-minute limit.
If I think it is reasonable, I will extend it; but so far, you have spent the last 50 minutes focused on the bike lanes.
MR. ROSARIO: Yes.
THE COURT: And Officer Fernandez's investigation.
Let's get to the main point, please.
MR. ROSARIO: Q. All right.
You never spoke with Mr. Abdelhalim, correct?
MS. NAVARATNASINGHAM: Asked and answered.
THE COURT: Sustained.
MR. ROSARIO: All right.
THE WITNESS: Correct.
MR. ROSARIO: Q. And you are untrained to be able to tell whether a person has been injured, so you could not speak to whether I had -- the extent of my injuries, correct?
MS. NAVARATNASINGHAM: Asked and answered.
THE COURT: Sustained.
MR. ROSARIO: Q. Okay. All right.
Do you believe that my testimony was

credible? You did not speak to me, but the officers had told you that my testimony was credible?

MS. NAVARATNASINGHAM: Objection, calls for speculation.

THE COURT: First of all, the only people in this courtroom who could determine your credibility at any point during this investigation or the accident or during your testimony is the jury.

You cannot ask an officer or any other witness: What did you think about the credibility of some person you are interviewing on the street?

Your next question.

MR. ROSARIO: Q. All right. You did not review the videos of Officer Thompson with the eyewitness; is that correct?

A. Correct.

Q. Are you now aware that there is a video of an eyewitness?

A. No.

Q. Okay. If there were an eyewitness, would you have written that into the report?

A. Yes.

Q. What would be considered an eyewitness? Would a person saying that they saw me struck by a vehicle be considered an eyewitness?

A. Yes.

Q. Is there ever a reason to not record that?

A. Every situation is different. It depends --

I can't speak to a hypothetical.
Q. You did not record that there was an eyewitness.
A. Correct.
Q. You know that Officer Thompson had mentioned this before or after your report that you mentioned that -- it could have been a week ago, I don't care -- has Officer Thompson mentioned that there was an eyewitness?
A. Not that I remember.
Q. All right. How would you determine if a person is an eyewitness?
A. If they claim to have witnessed something.
Q. Do they have to say that they saw the incident?
A. They could observe the incident.
Sometimes the witnesses see the aftermath of an incident. That could also be helpful. It just depends.
Q. If an eyewitness was seen to have a collision and one party was saying, hey, nothing happened, two other eyewitnesss said that they did, what would you normally do to -- write down?
Would you say there were two people saying there was a collision and then one person saying there was not a collision? Is that what you would write down? Or would you take the statements of the people, or more people?

Does more people matter on whether you write down who is at fault?

That is the question. I am trying to figure out: How does it make in there? Do you understand?

MS. NAVARATNASINGHAM: Objection, compound, vague and ambiguous. I am not sure I understand the question.

THE COURT: Sustained.

MR. ROSARIO: Q. All right. If you have two people that say they saw or experienced the collision and one person saying it didn't happen, how do you determine who is at fault, who to write down?

A. It just depends on the situation. Every situation is different. So it depends on the entire evidence.

Q. All right. Is it standard procedure to -- is it legal to omit eyewitnesses' and -- testimony from a police report?

MS. NAVARATNASINGHAM: Objection, relevance, vague and ambiguous.

THE COURT: Sustained.

MR. ROSARIO: Q. Are you aware of the implications to conceal evidence?

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. Are you aware that concealing --

THE COURT: Sir, you cannot ask these

questions unless you have a legitimate basis for doing so through other proof in the record; otherwise, it is merely speculation.

MR. ROSARIO: Q. Okay. I believe, then, that what we can do is we can talk about the --

You said you did not review any of the videos; is that correct?

A. Are you referring to the body cameras?

Q. Correct.

A. Correct. I don't have access to view other officers' camera footage.

Q. Are body cameras used generally -- in the reports, do they assist the officers in making sure the information is correct?

A. Some officers will review their body cameras to refresh their memory, others won't use them. It depends on who is writing the report.

Q. It is up to the officer who is writing the report to make a judgment; like if they see like an eyewitness statement, it is up to the officer to determine whether that statement is credible enough to go into the report; is that correct?

A. An officer would determine what statement is going into the report.

Q. Eyewitness statements generally, are they credible?

A. It just depends on the witness.

Q. All right. In cases of injury, are

eyewitnesss to be recorded?
A. Sorry. What is the question?
Q. In the case of an injury -- for example, two cars hit each other and no one is injured, it is one thing, if a person is injured and there is a eyewitness statement.
Is that typically almost always recorded in the document?
A. Typically, it would go in the police report as an eyewitness, yes.
Q. Now, since you don't have a direct experience with the videos, we might ask for you to come back on a couple of matters, but for right now, I think that we have established most of the stuff, I will consider what you said.
I really appreciate it. I guess now I will hand it to the Defense.
THE COURT: All right.

CROSS-EXAMINATION BY

MS. NAVARATNASINGHAM: Q. Thank you.
Officer Fernandez, I will try to be to the point and brief. Thank you for your time here.
A. Thank you.
Q. How long have you been a police officer here in San Francisco?
A. Approximately 7 years.
Q. Do you have an estimate of how many traffic

incidents you may respond to in a given year?
A. I can't really estimate. I am not sure.
Q. That is fair. I would like to go through your report, and I may ask you some very quick questions just so that we have a clean record, okay?
You have the report in front of you, sir?
A. Yes.
Q. Great. If you can turn to the page that is -- I guess it is this page, excuse me. A different page.
So I guess the first page, you noted here, Officer, that Mr. Rosario was operating a green Lime scooter, correct?
A. Correct.
Q. And if you go to page 5 of 7, sir -- Officer, my client was at the scene of the incident when you arrived there. Correct?
It says: P2 -- who is my client -- he was located on the scene?
A. Correct.
Q. Okay. And on that same page, Officer, it says that the Lime scooter that Mr. Rosario was operating, it did not sustain any damage, correct?
A. Correct.
Q. And the vehicle that my client was operating also did not sustain any damage, correct?
A. Correct.
Q. And if you can turn to the next page,

Officer, Page 6 of 7, the statement -- and I want to have a clean record here.

The statement that you noted here as to Mr. Rosario. It says here that:

Mr. Rosario stated he was riding the Lime scooter northbound on 5th Street approaching Tehama Street. He was riding in the bicycle lane against the flow of traffic. He observed my client's vehicle approaching and attempted to turn westbound -- excuse me -- he observed my client's vehicle approaching.

He attempted to slow down to avoid the collision and he collided with my client's vehicle.

Do you see that?

A. Yes.

Q. Okay. Mr. Rosario reported to you he was traveling approximately five miles per hour. Is that correct?

A. Correct.

MR. ROSARIO: Objection. I did not say that to him at all. That is hearsay. She is asking him to make statements about things that I said and he never heard me say that. He never took a statement from me.

MS. NAVARATNASINGHAM: I will rephrase, Your Honor.

THE COURT: All right.

MS. NAVARATNASINGHAM: Q. Officer Fernandez, it says the statement you received as to Mr. Rosario was that he was traveling approximately five miles per

hour prior to the collision, correct?
A. Correct.
Q. Okay. You then have a statement here that my client was driving southbound on 5th Street. Is that correct?
A. Correct.
Q. And it says here that my client looked at his rearview mirror to clear the bike lane.
You see that, correct?
A. I see the "side view mirror" to clear the bike lane, yes.
Q. Then he completed his turn, correct?
A. Correct.
Q. And my client stated that he did not feel any impact but instead heard screaming. Is that right?
A. Correct.
Q. And he did not see Mr. Rosario prior to the collision, correct?
A. Correct.
Q. It says here my client was traveling approximately five miles per hour. Is that right?
A. Correct.
Q. Then it says that my client exited the vehicle to check on Mr. Rosario and call the police. Is that correct?
A. Correct.
Q. And with reference to -- in your experience -- because Mr. Rosario brought this up --

in your experience, Officer, a person traveling on a scooter should be traveling with the flow of traffic, correct?

A. Correct.

Q. You did not cite Mr. Rosario for traveling against the flow of traffic, correct?

A. Correct.

Q. That was your conclusion, that Mr. Rosario caused the collision in violation of California Vehicle Code --

MR. ROSARIO: Objection. Speculation.

THE COURT: Response?

MS. NAVARATNASINGHAM: Your Honor, Mr. Rosario opened the door to the causation as to Mr. Fernandez's conclusion based upon his investigation we just walked through.

THE COURT: It is a lay opinion. Very well.

MS. NAVARATNASINGHAM: Q. Mr. Fernandez, based upon your investigation, you determined that Mr. Rosario caused the collision by driving on the opposite side of the road against the normal flow of traffic in violation of California Vehicle Code 21651B, correct?

A. Correct.

Q. I just asked this: You did not cite Mr. Rosario for traveling against the flow of traffic, correct?

A. Correct.

Q. Why was that?
A. Our department policy is for vehicle collisions, if a party causes injury to someone else and they are at fault, we cite them.
If the person is at fault and they only cause injury to themself, we don't cite them.
Q. You didn't cite Mr. Rosario because it was your determination, based upon the investigation, he caused injuries to himself?
A. Correct.
MR. ROSARIO: Objection. He didn't run the investigation; he collected the information to report that.
THE COURT: It is overruled.
MS. NAVARATNASINGHAM: Q. And my client was not cited, correct?
A. Correct.
Q. Why is that?
A. I didn't find any vehicle code violation.
Q. As far as the police report, do you recall if you ever received any inquiries from Mr. Rosario to make any changes to the report?
A. I don't believe so.
Q. If such an query had been made, that would be noted, correct?
A. Correct.
Q. According to your report, Mr. Rosario was examined at the scene by an ambulance personnel. Is

that right?
A. Correct.
Q. And he refused transport to the hospital at the scene, correct?
A. Correct.
Q. I am only asking this because Mr. Rosario brought this up.
But a driver has to be able to see an oncoming scooter in order to yield, correct?
A. Correct.
Q. A driver can't be expected to yield to a person or scooter that you can't see, correct?
A. Correct.
MS. NAVARATNASINGHAM: Thank you. I have no further questions.
THE COURT: Redirect?

REDIRECT EXAMINATION BY

MR. ROSARIO: Q. If a driver is not capable of seeing, they are still obligated to look; is that correct, Officer Fernandez?
A. Sorry.
Q. Drivers are obligated to look and determine they can safely traverse a sidewalk, correct?
A. They are required to make sure it is clear and to yield to any pedestrians, and if it is safe to do so, they can proceed.
Q. On the report you have there, there is a

supplement, correct?
A. Correct.
Q. So there was additional information. She had stated there wasn't one, but obviously there is --
THE COURT: Sir. Just ask the question, please.
MR. ROSARIO: Q. Okay.
Your report that you stated your findings were, as you said -- stated earlier, are based upon the other officers.
Is there ever a chance when you see and have been given information that you are able to adjust your report, or are you going to let these ones stand like this? Would you change it?
A. What do you mean?
Q. Given new information, as an officer -- as an officer, given new information that is provided that provides, you know, differentiation from the story, would you change your story, or at least the report, to correctly address the facts?
A. So once the report is published or finished, if new information is provided, then a supplemental report is completed.
Q. Okay. So the supplemental, that is added to the report that is in front of you?
A. Yeah. I have never seen this before.
Q. Yeah. I think you had also stated you had never seen the body cams before either. Correct?

A. I only was able to watch my body cam.
Q. Correct. So for this one -- this was filed, I believe, on November 15th of 2024 -- on the supplemental testimony regarding the incident.
MS. NAVARATNASINGHAM: Your Honor, for the record, I do want to just state, as far as this document goes, this is not -- we subpoenaed the police records for the incident and this is not anything that we received as part of the subpoena.
I do also want to note for the record the incident occurred February 4, 2021.
It appears that this supplement was submitted by Mr. Rosario on November 13, 2024, over three years after the subject incident.
So I would say this is unreliable and lacks foundation.
MR. ROSARIO: It is still part of the police report. It has got the stamps on it, it says: SFPD crime information services.
It is part of the report. We just clarified "people are" and the Defense just asked: People are supposed to add a supplement.
There is a supplement now.
THE COURT: It is -- sir, it may very well be part of the original police report; however, number one, it is beyond the scope of the original -- the cross-examination in this matter.
She did not, as far as I recall, address

anything that is contained in the narrative/supplemental we are addressing.

Two, it is not evidence.

Three, the officer has testified he knows nothing about the supplement.

So it is not in the report.

So you are asking him to testify about something he has no idea about.

MR. ROSARIO: No, I am not.

MR. ROSARIO: Q. I am asking: Do you recognize there is a supplement, sir?

THE COURT: By virtue of his testimony, he says: Yeah, supplements are prepared when there is new information that has been offered in connection with this incident.

But beyond that, he has no -- from what I gather, he doesn't have any understanding, he has never seen this thing before.

Am I correct?

THE WITNESS: That is correct.

MR. ROSARIO: All right.

THE COURT: So the Court --

MR. ROSARIO: Q. When a supplement is added, new evidence is presented, what happens then?

A. Repeat the question.

Q. Say new evidence is found about a situation and that supplement has been added. What then happens? You, as the officer who made the original

report -- and I guess in certain cases -- for example, this Court just brought it to your attention -- what happens then, when you have been aware that there is a new supplement that has been added?

What do you do?

A. For a supplemental, I don't receive any notification that you made a supplemental.

This would just be forwarded to the traffic division. They would review it.

But I was never made aware of it so I don't have any knowledge of this, sir, or anything.

Q. The traffic division is effectively like the final word on these things. They could update your report, correct?

A. They wouldn't update my report. They could continue the investigation if they deem it necessary.

Q. All right. Here is a question that was asked to you during your deposition.

THE COURT: No. This is beyond the scope of the cross-examine.

MR. ROSARIO: It is in response to her. It is a redirect.

MR. ROSARIO: Q. Are scooters traveling the bike lane --

MS. NAVARATNASINGHAM: I object to him reading from the deposition transcript when the witness is here.

MR. ROSARIO: We are validating --

MR. ROSARIO: Q. If your deposition is still true, regardless of the direction that -- traveling in -- it says: In regard to the direction of the bike or scooter is traveling in the street, is it fair game for vehicles to strike them?

Your statement says: It is not fair game to strike them, correct?

And you said: That is correct. It is not okay to strike them.

MS. NAVARATNASINGHAM: Objection. Argumentative.

THE COURT: Sustained.

You need not answer that question. It is beyond the scope of cross-examination. Very well.

Do you have any other questions, sir?

MR. ROSARIO: At this moment, for Officer Fernandez, that is what I have.

THE COURT: Officer, it appears you are subject to recall. Very well. That means during the pendency of this trial. All right.

Let's take our afternoon break. We will start up at 3:05, please. Remember not to form or express any opinions about this case to anyone. Thank you.

(Short recess).

THE CLERK: Please remain seated and come to order. Department 504 is back in session.

THE COURT: All right. We are back in

session. All jurors are present. All parties are present.

Your next witness, Mr. Rosario.

MR. ROSARIO: Your Honor, I call myself to the stand under Evidence Code 1220, party admission in California Evidence Code 1271 business records, the Evidence Code of 780, personal knowledge and credibility, that I received the records from the authorization of the Officer of the Court, the Dolan Law Firm, who provided the Department of Emergency Management record.

I am going to testify to my dying declaration that I made during the 911 call to the police and emergency services.

Party admissions is evidence of -- a statement is not made inadmissible by hearsay rule when offered against a declarant in an action to which he is party.

And the Court or jurors may consider the existence or nonexistence of a bias in the case where the testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter.

THE COURT: Very well.

MR. ROSARIO: I can provide that -- as Custodian of the Records, an affidavit of subpoena custodian appearance. I received this -- I was presented to the Court by my former attorney, the

Dolan Law Firm.

THE COURT: Okay. Well, all right. So how are we going to proceed? Are we going to have someone ask you questions?

MR. ROSARIO: I am going to play the recording for the Court and I am going to allow that, first, to stand, about my declarations that I made to the 911 services. And I will be able to certify that that is my voice in the recording.

It is going to be a little bit disturbing, okay? But it is important for us to understand that my personal declaration was the message that was sent.

THE COURT: Well, sir, I am just simply asking you: How are we going to do this?

Typically, we have witnesses who take a witness stand, and we have someone who will ask questions.

Are one of your assistants going to be asking the questions so we can have this evidence admitted into evidence?

I am not saying that it is going to, but I need to have somebody ask you the questions so that we have the right foundation in order for the material to be considered by the jury.

MR. ROSARIO: Okay. I have prepared some questions and have gone over them with Mr. Sobati to ask me.

THE COURT: Okay. In order to make this more

efficient, we will have Mr. Sobati ask you the questions and you should take the witness stand and be sworn.

MS. NAVARATNASINGHAM: Your Honor, before we do that -- I don't believe that I have been -- and I am not sure what recording he is referring to.

Before the jury hears it, I also believe a dying declaration -- he is here present.

So I am not sure he can illicit that testimony or that call. But I would like more clarity, before a jury hears a recording, what we are talking about here.

THE COURT: Okay. So the first thing is: If this is a recording of individuals which you are presenting, do you have a transcript of the recordings?

MR. ROSARIO: Yes.

THE COURT: Okay. We need to have at least 18 copies.

Do you have that? That is so that we can pass those out to the jury and I can give them instructions about the transcript.

Do you have that?

MR. ROSARIO: We don't have 18. We prepared the four the clerk told us to prepare. She told us to have four copies prepared.

We can have that made right now.

THE COURT: All right. Next, I think as a

matter of courtesy, you should show Defense Counsel the document that you propose to rely on.

Assuming the Court admits the audio recording, members of the jury, what I am going to tell you is that is the evidence in the case.

The transcript, which has been prepared is a part of the local rules by the Court which require that to aid a juror in listening to the recording, that a guide -- that being a reiteration of what was said -- has been reduced to paper.

That, however -- that document, however, is not evidence; it is simply there for you to make a notation.

If whatever you hear differs from what is on the paper, it is what you hear that is the evidence. It is not the document. Okay.

So before we go any further, I will hear from Miss Navaratnasingham.

MS. NAVARATNASINGHAM: Thank you. So we have been provided a 911 transcript from an eyewitness and a 911 transcript for my client.

I don't know if it would be more appropriate -- we have concerns about these two documents and the recording. I don't know if it would be more appropriate to do that outside the presence of the jury, Your Honor, before the jury hears it, because I have objections to this.

THE COURT: Okay. So let's do this: Can we

take other testimony, Mr. Rosario, and address this issue at the end of the day?

MR. ROSARIO: We can review -- we can take my testimony on my statements made during the body cam that Officer Fernandez collected as another, what we can do. Again, it is a party admission. I have the right to certify my own messages and the messages that I gave to Officer Fernandez at the scene.

THE COURT: Actually, sir, it is not a party admission if you are offering it.

MR. ROSARIO: Oh?

THE COURT: It is hearsay. It is only a party admission if the other side seeks to offer your remarks.

MR. ROSARIO: I am going to present my own statements to the police that were recorded.

THE COURT: Sir, you can simply testify as to what you told the police on that day.

It is as simple as that. You don't have to have a recording. The recording can simply be a form of corroboration --

MR. ROSARIO: Yes, sir, I would like to do that.

THE COURT: -- as to what you actually said, if there is some question.

So my suggestion here -- and again, I am not here to tell you how to practice law -- is to simply have Mr. Sobati ask you questions about what happened

that day.

Can you do that?

MR. ROSARIO: Yeah. The Court had informed me that I have to provide these piecemeal and we were going to go through each one of the pieces of evidence.

So I am trying to make sure that I am following the rules.

THE COURT: I appreciate that. But what I am asking you to do -- and I am not quite sure which items you are talking about piecemeal, but yes, evidence is admitted bit by bit and the Court's role here is to ensure that it is orderly and presented to the jury in some sort of organized and efficient fashion.

So the first thing I am going to do is I am going to ask you to testify; have you come up to the witness stand, raise your right hand and get sworn, do all those things, then Mr. Sobati can ask you the questions about what happened.

If there is some question with respect to some of the other items that you would like to have admitted, then we will address those at the end of the day.

But let's not have the jury wait outside while we are trying to resolve some questions about the admissibility of certain evidence.

Do you understand? In other words, you need

to get up on the witness stand and start telling the jury what happened, okay?

MR. ROSARIO: All right. We will start that today.

THE COURT: All right. Let's do that.

Sir, would you please approach the witness stand.

Mr. Sobati, are you ready to proceed?

MR. SOBATI: Yes, Your Honor. One minute, please, to get set up.

THE CLERK: Walk up to the witness stand. Please just watch your step on the wire there.

MS. NAVARATNASINGHAM: Your Honor, I want to lodge an objection, that I object to Mr. Sobati questioning him. He is not a lawyer. It is outside the scope of the accommodations that were requested.

THE COURT: I understand that. But there was a comedy years ago, that some of us may be aware of, called Bananas by Woody Allen, where we had Woody Allen sitting on the witness stand, running back down to the Counsel table asking him the question, him coming back up and answering the question.

I am not going to have that silliness in this courtroom. I am going to have this done in an orderly fashion. And I am going to permit Mr. Sobati to ask the questions so we don't have that kind of calamity in the courtroom.

This is not for comedy, this is a serious

matter for Mr. Rosario and I expect him to be prepared and ready to proceed.

So to the extent we can eliminate issues for error in this case, then the Court is going to require this in order to make the proceedings more efficient.

All right. Mr. Rosario, please come around the witness stand, remain standing, raise your right hand and the clerk will swear you in.

(Whereupon, Franciscus Dylan Rosario was called as a witness and sworn to testify as follows).

THE CLERK: Please be seated. Please state your name and spell it clearly, for the record.

THE WITNESS: My name is Franciscus Dylan Rosario. I go by Frank or Dylan.

THE COURT: Spell your name, please.

THE WITNESS: F-r-a-n-c-i-s-c-u-s; Dylan, D-y-l-a-n; the last name is Rosario, R-o-s-a-r-i-o.

THE CLERK: Thank you.

THE COURT: Mr. Sobati, you may inquire.

MR. SOBATI: Thank you, Your Honor, one moment.

DIRECT EXAMINATION BY

MR. SOBATI: Q. Mr. Rosario, do you remember the events of February 4, 2021 and your activities of that day?

A. Yes, I do. Would you like me to --

Q. Can you please tell me --

THE COURT: We don't proceed by way of narrative, okay?

So here is what I am going to suggest, and this is what I tell every lay witness that comes to this court. Okay?

You need to first listen very carefully to each question and let Mr. Sobati or Defense Counsel -- either Mr. Reyna or Ms. Navaratnasingham -- finish the question before you start answering because you may be answering something that they are not asking.

Next, please listen very carefully to the question and only answer the question. As I explained earlier, we do not proceed by way of narrative.

We ask for separate and discrete bits of information.

If either lawyer or either party seeks more information, they will ask another question.

When you answer, you must answer out loud and answer in a audible English word.

You cannot shake your head or throw your hands -- or make certain gestures, rather, with your hands because the Reporter cannot record that.

It is very important that we understand you and that we have an accurate record of your verbal responses.

Next, if there comes a time when you are not sure, I ask and we ask that you not guess because you are under oath.

If you do not understand a question, you may say that you do not; and if you hear an objection, as you already know, you must stop so that I can rule on the objection.

I will tell you again if you must answer or I will tell the party to rephrase or ask another question.

Make sure that you keep your voice up, and this will give a way -- or rather an order to the way questions are answered and this will greatly assist our Court Reporter here today.

Any questions?

THE WITNESS: Yeah. Can I use the restroom? Sorry. I am kind of scared. That is all right.

I guess that I had prepared the questions for Mr. Sobati to progress and I would give him answers one in a bit and then the step next and then what happened next after that.

So I will try to keep the answers as short as possible and succinct, so that way, we have this.

THE COURT: Good.

THE WITNESS: So I believe he asked me if I remember that day. Yes.

And then he started to ask me about what do I remember.

MR. SOBATI: Q. Let's get a bit of context.

Where did you live at the time? What did you do for work?

A. At the time, I was living in my work/live space which was for the Rowzzy Corporation that I founded with Dr. Lin Wang. It was located at 825 Van Ness Boulevard over by the Chase Center.

I had a 3,000-square-foot facility where I had my staff and my engineers, my computer scientists working with me at the location.

It was a facility that was leased to myself and to my CEO who I had hired to run the company for me, Art Patel, and I was working and operating out of that location.

Art Patel and I had --

MS. NAVARATNASINGHAM: Objection, narrative.

THE COURT: All right. Mr. Sobati -- the questions need to be shorter.

MR. SOBATI: Yes, Your Honor.

THE COURT: And elicit shorter responses, please. No narratives.

MR. SOBATI: Q. Were you happy with your company and work at the time? Yes or no?

A. Yeah.

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: I will allow some preliminary questions.

THE WITNESS: Absolutely I was happy with it. It was growing --

MR. SOBATI: Q. Yes or no, Mr. Rosario.

Can you briefly describe your health and

physical condition before the incident on February 4, 2021.

A. I was an athlete, I was surfing, mountain climbing, dancing, out riding bicycles once in awhile.

Q. Thank you, Mr. Rosario. Let's go back to the morning of February 4, 2021.

Where were you headed that day?

A. I was on my way to the grocery store that day.

Q. What were you doing right before the collision?

A. Well, I had -- well, hold on.

Right prior to my departure from my -- I am sorry. That is a bit out of order.

Q. Let me rephrase. So you were on your way to the grocery store --

A. Yes.

Q. -- when -- correct me if I am wrong -- this collision happened.

But what were you doing just before this collision? You were --

A. There is portions immediately before the collision, it is blank. I don't remember what was happening or what happened.

Q. Were you walking, or walking a scooter in a marked crosswalk?

A. I know I had the scooter with me. I often walk when I am at intersections or when I am

exhausted.

At the time, I believe I had the scooter and I was walking through the intersection.

Q. Did you see the vehicle coming towards you? Yes or no?

A. No.

Q. What happened next?

A. I don't remember. I remember coming to on a sidewalk.

Q. What did you feel physically when you came to? When you got hit and you regained consciousness, it sounds like. Correct me if I am wrong.

A. There is one part of the question --

Q. What did you feel, when you came to and woke up or regained consciousness, physically?

A. I felt like I was dying. I didn't know if my spine was broken, if I was -- I had a hard time -- it was breathing. I started breathing.

Q. Do you remember making any phone calls to anyone?

A. Move a bit faster. I want to slow down.

The question was: What did I feel -- wait -- and to step through this incrementally, we go straight from my office directory to that and during --

So let's -- you asked me how I felt about getting hit.

And I thought I was dying. I thought I was going to die. I didn't know what was going on.

All I know is it's grayness or black, and then suddenly I am in severe pain and I am on the ground and things are going in and out.

And I -- I -- on my feelings, I looked up and -- from the ground, and I was by myself and there was a vehicle pointed directly at me.

Q. Can you describe that vehicle?

A. It was a white van.

Q. Did you manage to find out what make and model that was? Was it visible, or too far to tell?

A. At the time, no. It was a large white van and there was somebody looking out the window at me and the van was either idling or stopped in the intersection.

I could see the scooter that I had with me, I was walking with, and it was -- it was about 10 feet away, and I realized I had been thrown and I couldn't breathe.

Everything had been knocked out of my --

Q. This person looking at you in the van, was it the first person you saw after you came to?

A. No. It wasn't. It was the second person I saw.

Q. Is that person in the van in the courtroom today?

A. The person in the van is in the courtroom today.

Q. Can you identify him?

A. He is the Defendant over there, Mr. Abdelhalim.

THE COURT: All right. The record will reflect he has identified the Defendant.

THE WITNESS: He was the second person I saw. There was another person.

MR. SOBATI: Q. Who was the first person?

A. The first person I saw was Mr. Dustin Roseman (phonetic) who was laying on the ground leaning up against the building about 30 feet away from me. He was looking at me in the eyes and -- he was looking at me in the eyes and I saw Dustin ahead of me on the opposite side of the sidewalk.

And then I saw the van, it was -- it was straddling the sidewalk.

Q. Did Mr. Roseman say anything to you?

A. He was nodding, he was nodding his head at me acknowledging that he saw me.

Q. Did Mr. Abdelhalim say anything to you?

A. I don't recall. He then left, he drove away with his van. I just recall that I was looking at Roseman and Abdelhalim -- Mr. Abdelhalim and I couldn't move.

And then his van pulled away.

Q. What did you decide to do then? I know this is emotional so if you need a moment, there is a Kleenex right there.

A. I thought I was going to die. I didn't know

what I was going to do. I thought I was dying. I couldn't breathe.

And so I moved, I crawled back towards the curb, and I was yelling for help. And my phone was back by where I had been hit in the crosswalk.

I had been thrown further down the sidewalk. And I couldn't move. My back was -- I was pulling with my fingernails in the concrete and I wanted to get to my phone to call 911 and I couldn't dial.

My sister or one of my employees was on the speed dial and I called and I told them I was hit and they said: Where are -- I remember it was my sister who -- it was Mr. Ben Giler (phonetic) asked me where I was, and I didn't know.

I actually had no clue where I was at. I didn't know. I was completely blacked out.

Q. Do you recall if a passerby helped or do you recall making that call and being able to release that information yourself?

A. Yeah. Somebody walking by, they didn't even stop afterwards. There was another man about 25 feet from me who was -- I don't have evidence about what he was on, but he was laying underneath a jacket with his head covered and he was just laying there and he -- I don't know if he was breathing or not. He was just on the ground. I don't know why he was there.

Q. Let's take a moment, please, because you did identify Mr. Roseman.

Was that the first or last time that you saw Mr. Roseman in any recorded media or in person? Or have you been in contact with him?

A. We are a going to hit ourselves right hear. Slow down on this. There was three human beings -- four human beings at the scene when I made that call.

Q. Who were the other people?

A. Yeah. So there was a man who was on the sidewalk on my side of the street, on my side of Tehama, about 25 feet down the street.

I don't know whether he was -- I mean, there is a lot of people on the sidewalk in San Francisco. We don't know what is going on with them.

I am not going to presume the person was overdosed or drunk or anything like that.

I am going to say it was a human being, a man, laying on his stomach. It is in the video cameras.

Mr. Roseman was across the intersection. The intersection was about 20 maybe 25 feet wide.

It was for Tehama and 5th Avenue.

Q. How far were you approximately from the curb at this point?

A. When I -- well, we are going fast. We need to back up and go one step at a time.

I started crawling towards the curb and I didn't know if I was going to die.

So I made a call to somebody -- it was either

my sister, or maybe I tried to call them both.

I know that Mr. Giler was one of my employees that worked for Mr. Patel and myself at our facility over at the -- over by the Chase Center.

Mr. Patel owns a restaurant called The Ramp Restaurant here in San Francisco and he owns the Boatyard and he is my CEO and my business partner and he builds yachts, things like that.

So Ben was over there. He inevitably showed up later on. I called because I didn't know where I was at.

And Mr. Abdelhalim had left. He had not called anyone.

MS. NAVARATNASINGHAM: Objection, lack of foundation.

THE WITNESS: No, I was there. This is absolutely, 100 percent my testimony.

THE COURT: I need to make a ruling.

THE WITNESS: Sorry. She said I lacked foundation.

THE COURT: Don't answer for the Court, please. It is overruled. The next question. Let's have another question, please, rather than a narrative.

THE WITNESS: All right.

MR. SOBATI: Q. So what injuries did you become aware of right way?

A. I didn't know what my injuries were. All I

knew was that I was completely confused. I had a hard time breathing. I couldn't get up. My back, my spine, my legs, everything was -- my back was inflamed, my chest was inflamed. I had a hard time breathing.

I could barely talk and I had -- this is -- there is -- the -- the next step that happened here was that I had called.

And you asked me what I was feeling after that. I don't remember. I just remember that I was on the ground. I was in extreme pain and I thought I had been abandoned to die.

And so I started yelling for help.

Q. How long were you yelling for help, would you estimate?

A. Minutes.

Q. Several minutes?

A. Yeah. Many.

Q. Then what happened next? Did Mr. Roseman or anyone else render any type of aid?

A. It must have been at least 5 to 10 minutes. I was asked -- I was trying to get somebody to help me and then I hear somebody offer to come over and say: Hey, you are okay.

Q. Who was that person?

A. That was Mr. Abdelhalim.

Q. How long approximately since he left the scene in the van was this until you saw him next,

would you say?

A. It was long enough for me to have a phone call and ask other people to provide information to Mr. Giler, and for them -- and for me to hang up and for me to crawl across the sidewalk and yell and scream for help for several minutes, and then he approached me on foot.

Q. Then what happened next?

A. He kept on telling me that I am okay and he says: You are going to be all right. And then he -- he started offering me money.

Q. Money? What do you mean by that?

MS. NAVARATNASINGHAM: Objection.

THE WITNESS: He put money in my face. This is my -- this is my recollection.

THE COURT: It is overruled.

THE WITNESS: I was offered money. I don't know why I was being offered money. I own an AI company. I make software, I don't know why I -- I don't know why --

THE COURT: Just state what happened. Don't speculate as to why someone else did something.

Your next question.

MR. SOBATI: Excuse me, Your Honor.

THE COURT: Next question, please.

MR. SOBATI: Q. Mr. Rosario, you stated you believe your life was in peril due to the injuries you sustained?

A. Yeah.
Q. You are laying there without aid. You have someone offering you money. What did you do next? You needed aid --
A. I thought I was going to die, right. And -- and I knew that he was wearing a mask, a blue mask on his face, and it looked like sunglasses but he was coming over and he was offering me this money.
And I told him -- I said -- I said: I need help.
And he just kept on offering it. And he stood over me and he kept on offering it.
And I said: I need help.
And then -- and then I realized he wasn't gonna call 911. And I told him -- I said: You gotta call 911. And I said -- and I tried -- I asked him several different ways.
I said: Can you call 911? I finally told him that there was cameras.
I told him that I took a photo and I sent it.
Q. How many times approximately did you have to request him to call 911 to render aid prior to him calling 911?
A. Minutes.
Q. Several?
A. Yeah, several minutes. He kept on offering me the money. I was: What are you doing? Help me. I thought I was going to die at that moment.

I didn't know what was going on. It is not my fault. What am I supposed to do?

Q. Did Mr. Abdelhalim eventually call 911?

A. I don't like going through this. It's not fair.

Q. Are you ready, Mr. Rosario?

A. Wait a minute. I started yelling for help because I didn't think he was going to help me.

Q. Did Mr. Abdelhalim eventually call 911?

A. Yeah. After I started yelling for help, for somebody else to come over to my aid.

He finally said -- it was one of the weirdest things. And it was like -- it was like he acted like he was surprised.

He was like: Oh, you want me to call 911.

And I am like: Yeah, I have been asking for minutes. For minutes.

I said: How many times do I have to ask you?

Q. Could you be heard on that 911 call?

A. We jumped -- we jumped way, way ahead here.

MS. NAVARATNASINGHAM: It calls for speculation.

THE COURT: Sustained. Sir, the answer is stricken.

THE WITNESS: Yes, I --

THE COURT: The answer is stricken, sir. The next question, please.

THE WITNESS: Okay.

MR. SOBATI: Q. After Mr. Abdelhalim called 911, what happened next?

A. He told them that he had hit me and he had given them the location of where we were at. And I was in such pain. I knew that he was on the call, because he was standing over me, and I was worried that I was going to die right there on the sidewalk and I needed to make sure that I got a message to my family about what happened to me.

And he was, you know, he said something like: Oh, it is was barely anything.

I realized he wasn't going to tell the truth or he was going to avoid it.

So I told him -- I said: He hit me with his van. I had to breath in as much air -- and my lung was collapsing, and I yelled and -- to make sure that my family, my children, my everybody, my employees, that they would know the man who is calling had hit me with his van.

And I needed to make sure that was on the record in case I died a few minutes later. I didn't know what was going on. I was in so much pain.

Q. What happened next? How long would you say that 911 call lasted?

A. I remember -- I just remember being in pain. It just got worse after that.

My call, there was multiple times I was just yelling in pain and I didn't know what to do.

I didn't even know if he was faking it. He was like faking it, he was calling 911. He already stood over me multiple minutes refusing to call.

I was like, all right, maybe this guy isn't even calling.

Your mind and your fight or flight, it was like adrenaline, it was all those things.

You are in severe, severe pain. And all I know is my back was in pain and I just didn't know what to do.

Q. Did Mr. Abdelhalim remain by you until first responders appeared on the scene?

A. No. He did not.

Q. Where did he go?

A. I don't know. He moved away from me. All I remember then was that there was sirens later and then there was a police officer there at the scene.

Q. If your memory serves correctly, do you remember the first police officer you saw? Do you remember who that was?

A. They were just dark, black/blue figures. I didn't see an individual person's face. All I knew is there was people asking me questions, you know, and they weren't even immediately offering me help.

They were just trying to figure out -- immediately they were like -- they started grilling me for questions. It was offensive.

I was like: What is going on? Call me 911,

give me -- and then I realized lots of things were going through my head.

THE COURT: Stop there.

Next question.

THE WITNESS: I need to take a break. Your Honor, please. I need to take a break. I don't think I can answer clearly right now.

We are going to have to come back to this again in a minute or -- we are almost at 4:00 o'clock. I think I need to take a break.

THE COURT: All right. We will take a 10-minute break. We will be back at 3:55 we need to keep going with this, please.

THE WITNESS: It is 4:00. Are you going past 4:00?

THE COURT: I am going past 4:00. We need to move the case along.

Remember not to form or express any opinions about this.

Please be back at 3:55; please.

(Short recess).

THE CLERK: Remain seated. Come to order. Department 504 is back in session.

THE COURT: All right. We are back on the record.

Mr. Rosario, you are still under oath.

The record should reflect all jurors are present and all parties are present including Counsel.

Mr. Sobati, your next question, please.

MR. SOBATI: Q. Yes.

Mr. Rosario, going back to that moment of impact, as we are about to discuss some of these next topics, how did you feel emotionally when you noticed the driver leaving the scene?

A. I was terrified, I had no clue what -- I mean, you are walking along and suddenly you get hit from behind and it is like you don't know where -- you know, most people are very aware what's in front of us. I had no clue. It was just -- boom.

And -- and where I -- where I -- where I had consciousness again or I was able to see, I saw Mr. Abdelhalim in a van looking out of his window at me. And I -- I was -- I literally wasn't sure what was going on.

I just remember it was just such severe pain in my back and around my spine and I -- I don't know. I didn't know if my back was broken. I didn't know what was going on.

I was just completely -- it was just like blind, it was literally what they call blindsided. I was terrified.

Q. To be clear, was the vehicle moving slowly or did the vehicle actually stop and the driver did not get out of the vehicle and then left?

MS. NAVARATNASINGHAM: It calls for speculation.

THE COURT: Number one, it does call for speculation; and two, Mr. Sobati, you are asking compound questions.

You need to ask one question at a time.

And you cannot lead the witness.

MR. SOBATI: Yes, Your Honor.

THE COURT: In other words, you can suggest the answer in the question saying: Yes or no?

THE WITNESS: Next, what happened, I can fill that in.

MR. SOBATI: Yes, Your Honor.

THE COURT: No question is pending.

Mr. Sobati, the next question.

MR. SOBATI: Q. Mr. Rosario, after you were struck did the driver stop the vehicle?

MS. NAVARATNASINGHAM: It calls for speculation.

THE WITNESS: I was -- I saw the vehicle. It was stopped in the intersection.

I remember looking down. I was looking at -- it wasn't until like minutes, a couple minutes later, that I realized I didn't have my cell phone.

THE COURT: The answer is stricken. It is nonresponsive.

Next question please. The jury should disregard the last question and answer of the witness.

MR. SOBATI: Q. After you were first struck, did the driver exit the vehicle and come to you? Yes

or no?

A. I don't recall whether he did or not. I don't know what happened.

I just remember that -- that -- that I was -- I was there and there was nobody around.

I saw the vehicle. I saw him through the window and there was -- and I -- I had to call -- I had to find my phone.

Q. Right. So we are at the phone now. What happened next with your phone, after that last call that you described that you made?

A. I -- I -- I continued to crawl across the ground and I looked down the street where I saw the van had departed and it was sitting there. I was just laying there. And the van was parked like down the block --

Q. Approximately how far away, would you say?

A. Maybe 200 feet. Quite aways, about half a block away. It was parked way down the block and I was laying on the ground and I didn't know what was going on.

I didn't know if it was the same van. I just know that it looked like the one that had just hit me, and by the time I got to the corner where the crosswalk and the intersection and where the scooter was at and my phone and things were at, is that I could see it.

And while I was sitting there looking at the

van sitting there, I was able to take a photo and send it to my -- I sent it to my sister or somebody. I got a photo. I got a couple other photos. And this was after I had called.

They said: Take a photo. Is he still there?

I said: I don't know.

Q. Are there any people in those photos?

A. Mr. Abdelhalim finally got out of the vehicle and started to approach me and I got a photo of him getting out of his van after he had parked it down the street.

I don't know why he had taken it down the street.

There was no traffic. There was nobody. So I don't know why he had gone -- why hadn't he just gotten out and helped me right there? I don't know why.

I thought that he had driven off. I thought I was going to die and I was left there on the sidewalk. And I didn't know whether it was him or not.

Then I saw him get out, and I am like: That is the guy. And I got a photo. And it was my sister, I think, who said: Okay, I got the license plate.

And -- and after that, I was in such pain I could barely remember what he said other than that he was offering me money and I didn't understand why he was offering, I still don't understand why he offered

me money.

He just kept on offering me money after that.

And he walked back towards me. I saw him in the picture I took from him. I was lying on the sidewalk --

MS. NAVARATNASINGHAM: Your Honor, objection.

THE COURT: Sustained.

MR. SOBATI: Q. Mr. Rosario, we have gone over this part. The next question I would like to ask you is:

After you implored Mr. Abdelhalim repeatedly to call 911 -- and he did make that 911 call.

MS. NAVARATNASINGHAM: Objection, leading.

THE COURT: Sustained.

MR. SOBATI: Q. When Mr. Abdelhalim made the 911 call, how long did that call last?

MS. NAVARATNASINGHAM: Objection, calls for speculation.

THE COURT: Sustained.

MR. SOBATI: Q. When Mr. Abdelhalim made the 911 call, were you speaking on that same call?

A. Yes. Well, he told them he was calling for me. He said: I hit him and there was barely anything but I am calling for him and I -- at that moment, to use his own words -- I hit him, it was barely anything, I am calling for him.

And they started to ask -- and then I -- I said: He hit me with his van.

I don't -- I couldn't hear the other end of the conversation at that moment.

And he stepped away from me after that.

Q. Have you heard that recording of the 911 call? Yes or no?

A. I have now, yeah.

Q. Can you be heard on that 911 call?

A. Yeah. Absolutely, clearly, I made a statement to my family and my children.

Q. What did you say on that 911 call?

A. I told the emergency services and my family that he hit me with his van. I said: He had hit me with his van.

Q. Did you say that once or more than once?

A. I said that one time. I was in such pain I could barely speak after that. You know, I don't know if it was adrenaline.

My body started finally relaxing, I guess, maybe after minutes, finally, when the police arrived.

I was in such severe shock, I guess you want to call it, when you get ran over from behind and you don't see it.

MS. NAVARATNASINGHAM: Your Honor, objection.

THE COURT: Sustained. You shall disregard the remarks.

MR. SOBATI: Q. Mr. Rosario, you mentioned first responders are showing up.

What happened next?

A. I mentioned this, there was -- I don't know where Mr. Abdelhalim went. He disappeared after that.

Then suddenly there was what I imagine was police officers. I don't know. The police and fireman have the same color suits. I don't know if they were police or if they were firemen. People were asking me questions. They were checking me out. They were picking up my things. Somebody took my wallet. Somebody had taken my phone from me. They had picked up my jacket.

Somebody had moved me -- that helped drag me. People had moved the -- the whole scene was being moved around. People were trying to assist.

And so from where I was at --

MS. NAVARATNASINGHAM: Your Honor, objection.

THE COURT: Sir, it is a narrative. I will strike the testimony --

THE WITNESS: What?

THE COURT: -- if you keep narrating. It is bits and pieces of information.

THE WITNESS: He asked me what happened afterwards. If we have to do this again --

THE COURT: Keep it short.

Mr. Sobati, next question, please.

What, if anything, happened --

THE WITNESS: The question was: What happened next? I guess --

THE COURT: What, if anything, happened after

the fire department and the police department arrived?

MR. SOBATI: Q. I understood from your testimony that obviously it was indistinguishable the FD from the PD.

What happened after these individuals started engaging you? What happened next?

A. They asked me all sorts of questions. I don't even remember what was even asked. I just kept -- I knew I wanted to get away from the area.

There was an officer, I just recall there -- somebody was being really aggressive towards me, like really like going, like you were doing this, and they were like jump --

Q. Was this person a government official?

A. It was one of guys in the blue. I don't remember exactly who it was. I just remember one of the guys in the blue, it was a fireman or a police officer, started demanding questions I was in no shape to answer.

I barely could breathe.

Q. You described having difficulty breathing and speaking, earlier, yes.

Do you remember a statement?

A. I didn't remember at the time. I barely remember my name. I remember --

MS. NAVARATNASINGHAM: Objection. No question is pending.

THE COURT: Sustained.

THE WITNESS: Those are questions Mr. Sobati --

MR. SOBATI: Q. Mr. Rosario, do you remember giving any of these officials a statement?

A. I don't recall. I mean they -- no.

I wasn't -- I was not in a state of mind that I could have given any accurate statement at that time. I was in such severe pain.

Q. Do you remember the Defendant giving any of the police or the fire department --

A. No, I didn't see him -- after he had departed and he had -- you know, after he had made the 911 call, he disappeared almost completely. I never saw him after that.

Q. Have you seen the police body cam footage of the Defendant speaking to the police when they arrived on the scene?

A. Yeah. That is after the fact now.

Let's stick on close to what happened at the scene right now, and we are going to talk about those things later.

Q. You are getting care.

Now you are sitting in the ambulance? Or where are you?

A. No. I was on the sidewalk and I kept on getting -- I got surrounded by police officers demanding me to give them a story or a statement and they are asking me -- it is kind of weird.

After the fact, when you see the video, you are like -- and literally from my own mind, if I see it, I am like I guess that happened. I don't recall it happening.

Does that make sense? If you get hit so hard your brain --

MS. NAVARATNASINGHAM: Objection, narrative.

THE COURT: The objection is sustained.

THE WITNESS: Mr. Sobati, ask me a quick question one at a time. I will try not to go, but -- I apologize. My mind keep on trying to fill in gaps.

So more explicitly, do I remember what was asked of me? No.

THE COURT: Next question, please.

The prior objection was sustained and the jury shall disregard the remarks of the witness.

Proceed, please.

MR. SOBATI: Q. We had Officer Fernandez in here earlier today.

What in his record, in your opinion, differed from actual events?

A. One, they -- they made the statement that I was -- I was riding a scooter. They fabricated that.

I said that I had a scooter with me.

Q. What direction were you traveling in?

A. I was -- I was traveling on 5th towards Market, so that would have been northbound. Northbound, I believe.

Q. When you were traveling, was the scooter motorized or not? Yes or no?

A. It wasn't motorized. The scooter, its battery had failed. I was walking it. I was kick-scooting it, but -- I was, you know, kick-scooting it.

Anyways, long story short, I was going northbound. I got hit from behind.

Q. And after you got hit and you came to, we have covered a lot of that there.

How do you know you got hit from behind?

A. I have broken ribs in my back along my spine. That is where the images and the --

MS. NAVARATNASINGHAM: Objection, calls for speculation.

THE COURT: It is hearsay.

THE WITNESS: I could feel my back was broken. Not hearsay. This is my feeling. I am allowed to tell people what I felt when my back was broken.

THE COURT: You may. But the way --

THE WITNESS: You don't get to tell me I didn't have my back broken. That is absolutely absurd.

THE COURT: Mr. Rosario, the way you framed it, it elicits a hearsay response, which is not allowed.

If you want to talk about how you felt, that

is fine. But if you are going to speak to what you read in medical reports and so forth, or what you were told by doctors or physicians or folks in the medical industry, you cannot repeat that because that is hearsay.

THE WITNESS: Well, okay. For -- for eight months afterwards, my back has been in pain, I feel my back is in pain. Regardless of whether a doctor said it, I couldn't lay on my back. My back was in pain.

The images, whatever. They told me my back --

MS. NAVARATNASINGHAM: Objection, hearsay.

THE COURT: Sustained. Excuse me.

When they say "they told me," that is seeking a hearsay remark. The objection is sustained.

Your next question, please.

MR. SOBATI: Q. How would you describe your pain and suffering at this time?

A. At this time now?

Q. At the time of the incident or shortly thereafter, that we were just discussing.

A. I thought I was going to die, yeah. I mean, it was the worst pain I ever had in my life.

Q. Did you need help to move around, ambulate, do normal life activities?

A. I could ambulate for about five to ten feet and after that, I couldn't. I would need support.

Q. And did you have that support from around

you?
A. Immediately after the collision, Mr. Ben Giler helped me. He is one of my employees at the time. He picked me up from the scene when I called him after Mr. Abdelhalim had departed. I had called 911 police to come pick me up. And he showed up and picked me up there.
It was the middle of COVID and -- anyways -- but go ahead.
Q. So how long was it before you were able to function on your own and not have to have somebody to assist you regularly?
A. Well, I think that gets ahead of us right now. I need to come back here and focus on the immediate event, Mr. Sobati. So please let's get through that.
Q. Then why don't you tell me, then, when Mr. Giler arrived at the scene to pick you up, as you had contacted him, where did he take you then?
A. Mr. Giler drove me to San Francisco General Hospital at first. And next question after that --
Q. And were you admitted to San Francisco General at that time?
A. No. There was a line.
Q. I heard you say earlier this was COVID.
Did you have medical concerns about being at the hospital?
MS. NAVARATNASINGHAM: Objection, leading.

THE COURT: Sustained. But it is not relevant.

THE WITNESS: I did not, I did not go into San Francisco General Hospital, no. You know, I -- I went to San Francisco General Hospital at first.

I was -- the paramedics at the scene, they checked my back. They looked to see --

MS. NAVARATNASINGHAM: Objection, hearsay.

THE WITNESS: No. This is what I experienced they put a thing on my back to check my breathing.

THE COURT: Overruled.

THE WITNESS: Then they looked at my side. Officer Fernandez videotaped it.

You could see me squirming on the stretcher in the thing, and they said to me -- they literally said to me --

MS. NAVARATNASINGHAM: Objection hearsay.

THE COURT: Sustained.

THE WITNESS: Okay. I was released by them because they did not feel I was or see that I was in immediate life danger.

They warned me. They said, hey, go to the hospital. That is when Mr. Giler, immediately after getting me out of the ambulance, he took me there. And there was a line to get in. There was people dying from COVID so I decided to go and get a x-ray myself.

MR. SOBATI: Q. Right. So what medical

1 facility did you first become aware that your injuries
2 were life threatening?
3 A. It was at San Francisco General Hospital --
4 excuse me -- it was at UCSF. I did not have bruises
5 but I was in severe pain all evening.
6 It started getting worse, you know. It --
7 it -- it plateaued for a bit. I thought I could make
8 it through.
9 And then it just continued to get worse. The
10 pain continued to elevate and elevate.
11 By the morning, Victoria, my wife, had taken
12 me to One Medical and they gave me a referral to UCSF
13 to go get an MRI or -- excuse me -- an x-ray.
14 Q. Then once you were at UCSF getting that
15 x-ray, you had a doctor administer that x-ray and tell
16 you what at that point?
17 MS. NAVARATNASINGHAM: Objection, hearsay.
18 THE COURT: No. I am sorry. That is
19 hearsay.
20 THE WITNESS: Just ask me what happened next.
21 MR. SOBATI: Q. What happened next?
22 A. Just repeat those, we will step through this.
23 Sorry, everybody. This is, you know, a
24 bit -- I wrote the questions for him.
25 All right. So what happened next?
26 I -- I went in, got the photographs, and the
27 gentleman offered to help me to walk out.
28 It was strange. He offered to help walk me

to the lobby.

MS. NAVARATNASINGHAM: Objection, hearsay.

THE COURT: It is hearsay. Sustained.

THE WITNESS: He said what? Oh, sorry.

He walked me to the lobby. I can't tell you what other people said.

So he walked me to the lobby and I got a call from my doctor telling me to go immediately --

MS. NAVARATNASINGHAM: Objection, hearsay.

THE WITNESS: No. My doctor told me to go to the ER or I was going to die.

THE COURT: Overruled.

THE WITNESS: My doctor told me to go to ER or I was going to die. That is what my doctor said.

My doctor called me and said: You are going to die if you don't go.

MS. NAVARATNASINGHAM: Objection hearsay.

THE WITNESS: My doctor told me: You are going to die.

I went to three ERs after that.

THE COURT: That is hearsay. It is sustained.

THE WITNESS: Well, I got a call and I was informed -- I am not going to say what they said -- I was informed that I needed to be at a --

MS. NAVARATNASINGHAM: Objection, hearsay.

THE WITNESS: What?

MR. SOBATI: Q. Where did you go from UCSF,

Mr. Rosario?

A. I went to -- I went to -- from UCSF -- I went from UCSF, Mr. Abdelhalim. I went from UCSF to Sutter to try and get treated --

MS. NAVARATNASINGHAM: Objection, Your Honor.

THE WITNESS: -- for the hit that he did to me. I know what he did to me.

Mr. Abdelhalim, you hit me.

MS. NAVARATNASINGHAM: Objection.

THE COURT: First of all, Mr. Rosario, there is no question pending. Your remarks are stricken.

The jury is instructed to disregard what you have said.

Sir, it is improper for you to make those kind of remarks. Especially if there is no question pending.

I have tried to --

THE WITNESS: It was improper for him to lie about hitting me.

THE COURT: Sir, this is not an argument between you and me at this moment. I am simply ruling on what evidence can be admitted in this case.

Please conduct yourself appropriately.

Mr. Sobati, do you have another question that does not invoke hearsay?

MR. SOBATI: Yes, Your Honor.

THE WITNESS: I got somehow --

THE COURT: There is no question pending.

THE WITNESS: Ask me what happened next, I guess.

MR. SOBATI: Q. You were at UCSF, you spent some time there. You went somewhere from there.

Where did you go?

A. Okay. I went to Sutter. Actually -- no, I am sorry. I first went to the Parnassus -- to the hospital at Parnassus and the line was all the way around the block.

There was cars literally going all the way down the hill and we could not get into --

Q. You left Parnassus.

Where did you go after that?

A. Thank you. Thank you for asking it this way. We can step through this.

I then went -- Victoria drove me -- it got, started getting worse, the pain, so we started looking for the next available hospital.

I remember going to Sutter and I went in there and that is where I engaged with the doctor next, it was Dr. -- the record will show here -- it was Dr. Yamamoto from Sutter.

Q. How was your breathing at this time?

A. The next thing that happened.

THE COURT: No question is pending.

THE WITNESS: Mr. Sobati, please ask me what happened next. You are jumping way ahead.

I asked him to ask what is next in my

questionnaire.

So please, Mr. Sobati, please ask me --

THE COURT: Mr. Rosario, we are going to take our afternoon recess. We will adjourn until tomorrow at 9:30.

Members of the jury, please return tomorrow at 9:30. Remember not to form or express any opinions about this case. Thank you. Thank you for your patience. Leave your notebooks behind. They will be here tomorrow. Thank you.

(Whereupon, the jury was excused from the courtroom).

THE COURT: You may step down, Mr. Rosario.

(Whereupon, the witness stepped down from the witness stand).

THE COURT: All right. The record will indicate that the jury has been excused for the day and that we have all parties present including Counsel.

I am going to ask now, Mr. Rosario: Do you wish to continue with having Mr. Sobati ask you questions or would you prefer to simply give a narrative on the witness stand?

MR. ROSARIO: I believe I understand, Your Honor, how the process that you want the answers and I appreciate what Mr. Sobati is doing.

I believe that I need to -- tonight, to prepare a proper sequence. And if it does not work,

we would default --

THE COURT: You are not answering my question. Do you want to continue with Mr. Sobati or do you want to give a narrative?

THE WITNESS: I believe a narrative right at this moment unless Mr. Sobati and I can come to agreement on how the questions should be framed right now.

I could probably provide those questions for you tomorrow.

THE COURT: I don't need the questions.

When I say "narrative," you can tell your side of the story on the witness stand.

You are going to have to give the other side the opportunity, however, to make appropriate objections and for me to make the rulings.

Mr. Sobati does not seem to understand that what follows an objection is a ruling, and the Court Reporter has attempted to intervene without much success; neither have I.

There have been occasions where I have not intervened simply because I cannot get in a word edgewise.

The polite way or courteous way to observe courtroom decorum is to wait for the Court to make its ruling.

You cannot continue to ask the question. So when the Court has not even made or -- addressed the

remarks of opposing Counsel.

So I am discouraged by your use of Mr. Sobati here because it is not turning out to be as efficient as I thought.

So if you choose to do the narrative fashion, if you choose to go that route, I expect you to give short statements about what happened.

You understand what the rules are, the motions in limine rulings have been, and I expect you to follow them.

To the extent that you want to have an emotional outburst or that you are upset about one thing or another, that does not help you in this case.

MR. ROSARIO: All right.

THE COURT: It does not help your presence in front of the jury.

The last few minutes in front of the Court and in front of the jury were not helpful. That is why I took an early break here, largely because you were unraveling.

We cannot have you attack the other side with personal opinions about the other witnesses in this case whether you agree or disagree or not.

You have no place doing that.

The only people who have the right to decide whether someone was right or wrong or to assess their credibility and so forth is the jury.

You have no right to tell them how to think

or to say what you think. It is not relevant.

MR. ROSARIO: When somebody calls me and tells me I am dying, I was trying to share that --

THE COURT: Sir, that is something that is to be presented to the jury.

You have repeated it on numerous occasions that you were dying and that you were terrified and you were not sure what was happening.

I could repeat the testimony several times over.

MR. ROSARIO: Okay.

THE COURT: And I have not; I have not ruled that this is becoming cumulative, but I will.

So tomorrow you must understand that when you testify, that you do not present anything other than new material, understood?

MR. ROSARIO: Understood.

THE COURT: Otherwise, I will strike it. I have been doing that this afternoon largely because you repeat yourself many, many times and the jury gets the point.

At some point, they hear it too often and they will not take you seriously.

So make sure that you get in and get out with your statements; short, brief, narrative statements about what happened and why you think the other side is liable and why there is causation.

You don't have to explain it. You simply

have to put the evidence on and then make the argument to the Court.

That is how it works.

Anything else?

MS. NAVARATNASINGHAM: Your Honor, did you want to address the transcripts that he had, or do you want to do that tomorrow?

THE COURT: I have no idea. What transcripts do we have? They don't have to be verbatim of the recording.

They are simply there as a guide.

The question for me is whether there is going to be an objection to the actual presentation of the recording to the jury and what the basis for that is.

MS. NAVARATNASINGHAM: Yes, Your Honor.

First of all, there is a 911 transcript for eye witness and this is aside from the fact that I don't know who prepared these transcripts, for either of these, but the 911 call for eyewitness in particular, there is no identification as to who the witness is.

And, you know, this is one of those, I believe, maybe it was included in the Dolan documents so if the Court is going to say authenticity is established, that is fine, but we do object as hearsay and it lacks foundation as we have no idea who this person is.

There is no name in either, in the recording

or in the transcript.

Furthermore, relevance. She says here -- it sounds like a passer-byer that says: There was a van that might have hit a scooter. It might be a hit-and-run, I don't know.

So I am not sure what the relevance even is. But more importantly, the reliability of this, she says: It might have been a hit and run, I don't know. And she doesn't leave her name.

And it is unduly prejudicial where there is no probative value for this for the jury to hear this recording. They don't even know who this is.

THE COURT: Mr. Rosario?

MR. ROSARIO: The defense has had four years, two and a half years since they received this document, to challenge that.

It is spoliation. Like I said, I received these documents from the Dolan Law firm.

Just because the person is dead or disappeared on this does not mean that it is not admissible.

It provides foundation for holding my claim against Mr. Abdelhalim that he had struck me but that I had been abandoned. And I can provide -- I guess, you would say I could provide a motion here.

I have a Complex record of request where they had resubpoenaed these records. This is not surprise to them.

Mr. Alberto had requested these on the date of February 26, 2024, where he had requested all documents, records stored in any format recording -- regarding the report that occurred.

They have known about these for quite a long time.

THE COURT: Mr. Rosario, the claim is two-fold. It is not about the fact that they don't have it.

They are not claiming that they are prejudiced because of delay.

There is two reasons for it:

One, the first issue which I think I can dispense with, is that there is some question about its authenticity.

If it is from the Dolan Law firm and if this is the same item that those two lawyers came in to discuss, I did say that I would accept those 911 -- at least that recording from the Dolan Law firm, that is what they received because you had presented evidence that the dispatch unit, the custodian of records for those dispatches no longer have that in possession.

In any event, I am going to dispense with that and assuming they are what they purport to be. And certainly, you can make an argument about them, Miss Navaratnasingham, about this authentic -- authentication.

But second, as to the other issue, I am going

to allow them in under Evidence Code Section 1240.

It does not require an identification of the party who made the statements. It simply requires that the declarant, who apparently is a woman, made the statement.

It is explaining what she saw, the event, and she is making it, she is making the statement in response to what she has just seen and the event.

It does not appear, judging from what has been said, that there has been any lapse of time to change the content of what she is saying.

There is an inherent form of reliability made in that statement, and to the extent it is relevant, it is for the jury to decide how much weight it wants to give.

It doesn't have a whole lot of weight simply from the Court's view.

The jury has to say: Okay, she thinks the van may have pulled over, maybe it didn't, maybe it is a hit-and-run.

We don't know. All we know is what was reported at the moment.

The Plaintiff is going to argue it was a hit-and-run. You are going to argue, obviously, through your -- you know, that there is no case for a hit-and-run here.

So the Court is going to rule that that audio recording may be played in front of the jury.

You folks, however, must have a device that plays the recording. I don't see anything in front of me right now.

You may have it in the anteroom, but that needs to be ready and there should be no delays in playing that once Mr. Rosario seeks to have that played in front of the jury.

The transcripts, there should be 18 of them. That is 15 for the jurors that are here; one for Defense Counsel, who apparently has one; one for the Court and one for the Courtroom Deputy.

And instruction that is always given is that the evidence in the case is what the recording purports to be -- I have already instructed them as much -- not what the transcript says. All right?

The transcript is simply a guide for the jurors to follow along.

To the extent that there is some difference in what happened, it is the recording that takes priority and is the evidence for them to consider. All right.

So that addresses the 911.

Is there something else that you seek to have admitted? I don't want to spend time during the middle of the trial addressing these issues during the time when the jury is present. It is a waste of their time.

MR. ROSARIO: Your Honor, the Defense asked

for the body cams to be entered into evidence.

We would also like to use those. So we would like to ask the Defense: Go ahead, provide the copies of the body cams that they have retained from the San Francisco Emergency Services so we can avoid this type of problem, so they don't challenge the credibility.

They asked for the body cams, Your Honor, to be admitted.

It is on their evidence list.

THE COURT: The question is -- I think the ask is a request to review or to present the body cams that are apparently on your exhibit list.

MS. NAVARATNASINGHAM: Sure. They were provided by Dolan. He has had them for whatever, sure.

THE COURT: All right. So what is the ask?

You don't have them?

MR. ROSARIO: No. I have them. I don't want the same situation where they are going back saying we don't know where they are from.

THE COURT: Mr. Rosario, let me put it this way: If they are the only ones who had the video recordings or the body cameras and for some reason you never recovered them or retrieved them from the Custodian of Records and so forth, and were not on your exhibit list, you cannot come into the courtroom and then ask the other side whether they would be willing to part with those exhibits. It is their

call.

But if you have those materials, then you are perfectly welcome to submit those, provided you provide some authentication, proper authentication, of the body cameras.

I am going to subject anything and everything that any party submits in this matter to the rules of evidence.

MR. ROSARIO: Okay. We will provide the certifications we have.

MS. NAVARATNASINGHAM: Your Honor, on the point of the body cam footage, there is five videos. They are quite lengthy and a lot of it is just standing around and some of it is talking about something else.

There is also insurance references in there.

So what we did on our end was we pared it down to just the relevant portions that we wanted the jury to hear.

I think all in we have about 8 or 9 minutes pared down, because it would be a waste of time for them to listen to all five videos.

THE COURT: Are there transcripts with them?

MS. NAVARATNASINGHAM: We could prepare transcripts.

THE COURT: You should.

MS. NAVARATNASINGHAM: Okay.

THE COURT: You should share them, obviously,

with Mr. Rosario.

MR. ROSARIO: Your Honor, I have my own transcripts. I don't think that the Defense cherry-picking official transcripts is appropriate.

We will, no problem, fast forward to the certain parts. The Defendant's own statements and admissions of insurance -- the jury is not here -- his own statements that he has insurance and was going to cover my damages are in there.

That was his admission. I am not going to -- and I don't think it is fair for anybody to allow the Defendant to claim that it is covered to the police.

He was ensuring to the police my damages were going to be covered.

Now they are saying, oh, by the way, we don't want his admissions in there to be taken out.

It is the whole record. The record is the record, good and bad, whatever it is. I am willing to go in there. They want to say, hey, Mr. Rosario was making claims he was riding the scooter.

It could be as equally damaging to me as it is to him.

We can't change the official records because it doesn't suit them or it is damaging to them.

THE COURT: Sir, there are certain parts of audio and video recordings, and sometimes they need to be redacted or they have -- must be deleted for purposes of presentation to the jury.

If there is a reference to insurance, the Court is going to, pursuant to its own ruling on motions in limine that was presented to the Court, have the parties strike any remarks having to do with insurance.

It is irrelevant.

MR. ROSARIO: No. He used it as an excuse to escape liability.

THE COURT: Sir, it is irrelevant.

MR. ROSARIO: He stated that is how I was going to care for my liability.

It doesn't matter, he implied that to a police officer.

THE COURT: Sir, if you insist on bringing that in front of a jury -- you've already brought the fact that he has offered to pay money or to settle.

I don't know the details. I allowed that in, perhaps in error, but -- I have allowed it into evidence, but I will not allow you to bring in the fact of insurance into this case. I have already ruled that.

The offer was, there was a ruling with regard to settlements.

The settlement discussions and so forth are clearly not matters that can be taken up by you. The fact there was an offer by him, as I said, I should have excluded that; but in any event, the issue here is whether he caused the accident that you were

1 involved in and that's all that matters.
2 Whether or not he has got coverage for
3 insurance or not has nothing to do with causation or
4 liability. It is standard in the Evidence Code, sir,
5 and if you violate this I will hold a hearing and
6 there will be consequences.
7 MR. ROSARIO: I understand that is why we are
8 talking about it right now, Your Honor.
9 So if somebody says they get -- for example,
10 in this situation, he hits me, the police ask him:
11 Hey, good thing you have insurance, to make sure you
12 are covered for these things.
13 He says: Yes, my insurance will cover for
14 these things.
15 He directly states that he should not be held
16 accountable or liable or those things based upon the
17 fact that he had insurance coverage.
18 The police officers let him go, saying:
19 Okay, great, make sure you call your insurance. Make
20 sure you go take care of this guy.
21 He used it as a way of exiting his liability
22 and now, once we get to court, he is saying, oh, I
23 didn't say that.
24 Well, guess what? You can't use that as an
25 excuse and a justification to an officer.
26 THE COURT: He cannot reference that during
27 the trial.
28 If he were to offer that himself, that would

be hearsay.

You cannot offer that, period.

MR. ROSARIO: Okay.

THE COURT: There are consequences. If you continue to refer to offers or settlements or insurance -- these are all rulings from before, sir.

If you violate this again, there will be sanctions that are associated with it.

MR. ROSARIO: I never violated it in front of the jury.

THE COURT: Yes, you did. You did the thing about -- you elicited comments about -- from yourself, about the fact that Mr. Abdelhalim repeatedly offered money to resolve this matter.

MR. ROSARIO: No, I did not. I said, I don't know why he offered me --

THE COURT: I won't get into an argument. You are going to follow my rulings or there will be consequences.

MR. ROSARIO: All right.

THE COURT: I have already given you much bandwidth in this matter and I am going to tighten down that bandwidth sooner than you think.

So proceed with caution.

We are adjourned.

MS. NAVARATNASINGHAM: Thank you, Your Honor.

(Whereupon, the Court was in recess at 4:43 p.m.)

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STATE OF CALIFORNIA)
) ss.
COUNTY OF SAN FRANCISCO)

I, DENNIS M. SOUZA, CSR No. 3893, do hereby certify that I am an official reporter Pro-Tem of the Superior Court of the State of California, in and for the County of San Francisco, and that as such, I was present and reported in stenotype the proceedings had in the within-entitled matter at the time and place herein set forth, consisting of these proceedings held on April 16, 2025, and that the same is a full, true and correct transcription of said stenotype notes as taken by me in said matter, to the best of my ability.

DATED: San Francisco, California, this 16th day April, 2025.

DENNIS M. SOUZA, CSR #3893

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